PART F
SPECIFIC DEVELOPMENT TYPES

Additional provisions for certain types of development

Revision: Amendment 8 (November 2025)



Contents

Part F1	**Residential Development**	**485**
F1.1.	**Low Density Residential**	**488**
F1.1.1.	Private open space	488
F1.1.2.	Visual privacy	489
F1.1.3.	Acoustic Privacy	491
F1.1.4.	Sunlight access	492
F1.1.5.	Views	493
F1.1.6.	Driveways and parking	494
F1.1.7.	Dual occupancy	496
F1.1.8.	Secondary dwellings	498
F1.2.	**Medium Density Residential**	**500**
F1.2.1.	Building articulation and separation	500
F1.2.2.	Private open space	501
F1.2.3.	Communal open space	503
F1.2.4.	Landscaping	504
F1.2.5.	Visual privacy	505
F1.2.6.	Acoustic privacy	506
F1.2.7.	Sunlight access	507
F1.2.8.	Views	509
F1.2.9.	Driveways and parking	509
F1.3.	**Ancillary Development**	**512**
F1.3.1.	Fences	512
F1.3.2.	Detached studios	514
F1.3.3.	Outbuildings	515
F1.3.4.	Swimming pools and spas	516
F1.3.5.	Tennis Courts	518

Part F2 Retail and Commercial Development 519

F2.1. Building Design and Site Planning 522

F2.2. Parking and Access 523

F2.2.1. Exceptions to parking rates 525

F2.3. Landscaping for parking areas 527

F2.4. Amenity 529

F2.4.1. Operational Noise and Odour 529

F2.4.2. Sunlight access 530

F2.4.3. Views 531

Part F3 Industrial Development 533

F3.1. Building Design and Site Planning 536

F3.2. Driveways and Parking 537

F3.3. Landscaping for parking areas 539

F3.4. Amenity and Privacy 541

F3.5. Industrial Ancillary Development 544

F3.5.1. Industrial Retail Outlets 544

F3.5.2. Dwellings (Caretaker's residence) 544

Part F4 Tourist Development 547

F4.1. General objectives for all Visitor and Tourist Accommodation 550

F4.2. Bed & Breakfast Accommodation, and Farm Stay Accommodation 551

F4.2.1. Site Planning and Bush fire requirements 551

F4.2.2. Parking and Access 552

F4.2.3. Amenity 553

F4.2.4. Sunlight Access 554

F4.2.5. Services 554

F4.3. Hotel or Motel Accommodation, Serviced Apartments and Back-packers' Accommodation 556

F4.3.1. Site Planning and Building Design 556

F4.3.2. Building articulation and separation 557

F4.3.3. Site Requirements and Services 558

F4.3.4. Parking and Access 558

F4.3.5. Landscaping 560

F4.3.6. Visual privacy 562

F4.3.7. Acoustic privacy 563

F4.3.8. Sunlight access 564

F4.3.9. Views 565

F4.4. Eco-tourist Facility 566

F4.4.1. Design and Operation 566

F4.4.2. Services 567

Part F5 Subdivision and Consolidation 569

F5.1. Subdivision 572

F5.2. Consolidation 578

Part F6 Signage 579

F6.1. General requirements 582

F6.1.1. General objectives 582

F6.1.2. Unacceptable signage 582

F6.1.3. Exempt Development 582

F6.1.4. Replacement of existing signs 583

F6.1.5. Signage in the public domain 583

F6.1.6. Number, location and design of signs 584

F6.1.7. Illumination 585

F6.1.8. Heritage items and heritage conservation areas 586

F6.2. Controls for specific sign types 589

F6.2.1. Building identification signs 589

F6.2.2. Wall signs 589

F6.2.3. Fascia signs 591

F6.2.4. Under awning signs 592

F6.2.5. Top hamper signs 593

F6.2.6. Window signs 595

F6.2.7. Community notice and public information signs 596

F6.2.8. Temporary event sign 597

F6.2.9. Projecting wall sign 597

F6.2.10. Freestanding pylon and directory board signs 600

F6.3. Area specific signage controls 602

F6.3.1. The Edge Cinema 602

F6.3.2. BMCC Headquarters 604

Part F7 Other Development 607

F7.1. Child Care Centres 610

F7.2. Home Employment 612

F7.3. Service Stations 613

F7.4. Sex Services Premises 614

F7.5. Intensive plant agriculture 615

F7.6. Keeping of Hoofed Animals 616

F7.7. Seniors Housing 618

PART FI
RESIDENTIAL DEVELOPMENT



Introduction

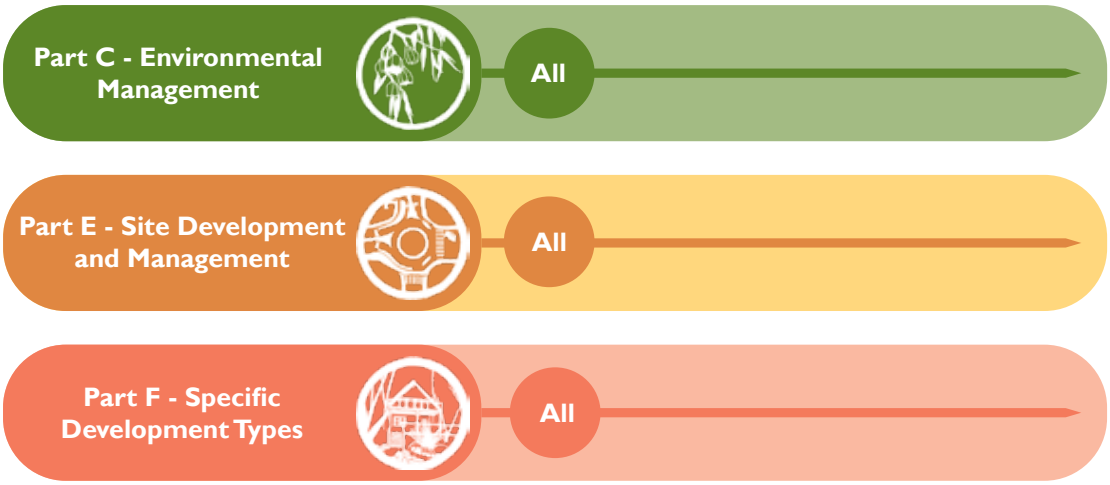
Part FI establishes additional provisions for residential development in the Blue Mountains and is divided into low density residential, medium density residential and ancillary development.

In practice most of the controls relevant to residential development will be contained in earlier parts of the Blue Mountains Development Control Plan. This part contains supplementary controls relating to open space, residential amenity and the like.

To the extent of any inconsistency between this section and any other DCP sections, this section will prevail.

Note: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In determining if a development application should be characterised as "alterations and additions" or an application for "a new building", Council may refer to the Planning Principle established in Coorey v Municipality of Hunters Hill [2013] NSWLEC 1187 to guide the decision making process.

Read in conjunction with:



Relationship to other legislation and documents

- *State Environmental Planning Policy (Exempt and Complying Codes) 2008*

F1.1. Low Density Residential

This part contains objectives and controls which apply to development for the purposes of low density residential development, including the following types of development defined in the Blue Mountains Local Environmental Plan 2015 (LEP 2015):

- Dwelling houses
- Dual occupancy
- Secondary dwellings
- Semi-detached dwellings
- Group homes

F1.1.1. Private open space

Explanation

Private open space areas allow for passive recreation and contribute to the health and amenity of low density residential development.

Objectives

O1. To provide private open space that functions as an accessible extension to the living area of a dwelling, is designed to protect privacy and optimise solar access, and allows for passive recreation.

Controls

C1. Private open space is not to be situated in the front building setback.

C2. Development for the purposes of a secondary dwelling is to have at least 25m^2 of private open space that is accessible from the secondary dwelling (whether or not associated with the principal dwelling).

C3. For each dwelling of a dual occupancy development, provision is to be made for a minimum area of private open space, based on the number of bedrooms in the dwelling, as specified in *Part FI - Table 1*.

Part FI - Table 1: Minimum area of private open space based on number of bedrooms

Number of bedrooms	Minimum area of POS
One (including bedsits)	25m^2
Two	40m^2
Three +	50m^2

C4. Private open space provided to comply with C3 is to include at least one area that:

(a) has reasonable access to a living area of the subject dwelling, and

(b) is on a compatible level with a living area of the subject dwelling, and

(c) has a slope of less than 10%, and

(d) complies with the minimum area and minimum width, based on the number of bedrooms in the dwelling, as specified in *Part F1 -Table 2*.

Part F1 - Table 2: Principal area of private open space based on number of bedrooms

Number of bedrooms	Minimum area	Minimum width
One (including bedsits)	15m^2	3m
Two	20m^2	3.5m
Three +	25m^2	4m

F1.1.2. Visual privacy

Explanation

Low density residential development should be designed to optimise visual privacy by minimising overlooking and cross viewing to adjoining dwellings. Complete visual privacy is often difficult to achieve in the urban context and is not necessarily desirable. Some level of cross viewing between properties is beneficial as this serves to improve security through passive surveillance.

Note: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of privacy Council may refer to the Planning Principle established in *Meriton v Sydney City Council [2004] NSWLEC 313* to guide the decision making process.

Objectives

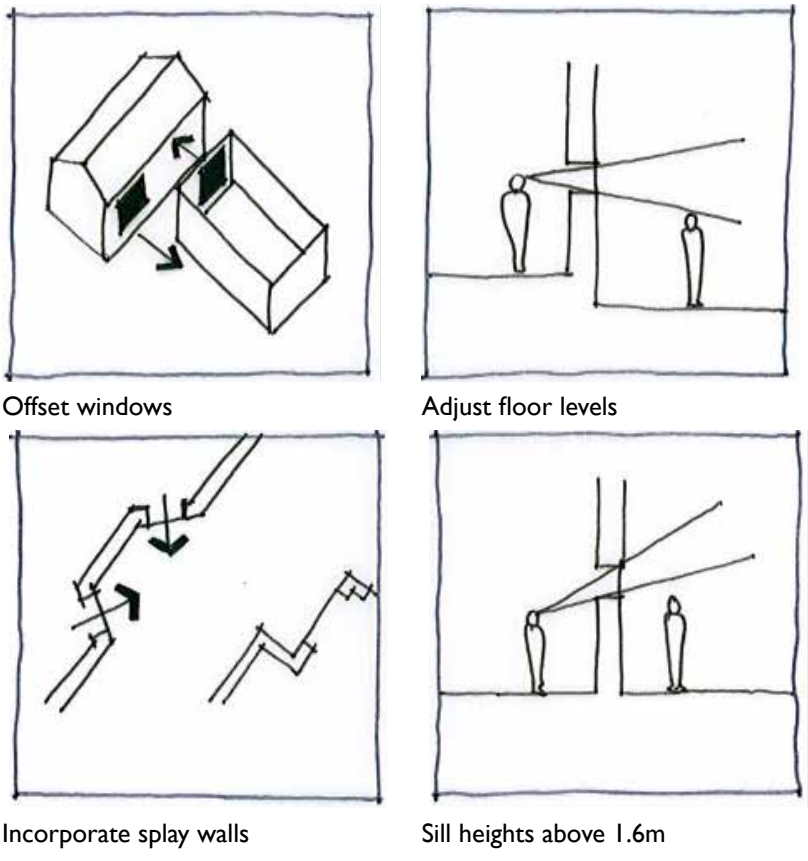
O1. To ensure that low-density residential development is designed to provide a reasonable level of privacy for dwellings and to protect the privacy of adjacent and nearby properties.

Controls

C1. The location, scale and design of a dwelling house or secondary dwelling shall ensure that the visual privacy of residents of buildings on adjoining allotments is not significantly impacted upon.

C2. Direct views from a dwelling house or secondary dwelling into the principal private open spaces or habitable rooms of dwellings on adjoining allotments are to be minimised or effectively screened.

Note: *Part F1 - Figure 1* illustrates some of the design approaches that may be incorporated into development to minimise direct views of private open spaces or habitable rooms of dwellings on adjoining allotments.



Part F1 – Figure 1: Design approaches to minimise direct views. Source: AMCORD

C3. A privacy screen must be provided for any part of a window to a habitable room that is less than 1.5m above the finished floor level of that room if –

(a) The window faces and is less than 3m from a side or rear boundary and the room has a finished floor level of more than 1m above ground level (existing), or

(b) The window faces and is at least 3m but not more than 6m, from a side or rear boundary and the room has a finished floor level of more than 3m above ground level (existing).

C4. Proposed habitable room windows of a dual occupancy with a direct outlook to habitable room windows or private open space of an adjacent dwelling are to have a separation distance of no less than 6m.

C5. Where proposed habitable room windows of a dual occupancy will have a direct outlook to habitable room windows or private open space of an adjacent dwelling and are separated by less than 9m, the window shall:

(a) be offset a minimum of 1m from the edge of the proposed window to the edge of the existing window, or

(b) have sill heights of at least 1.6m above floor level, or

(c) have fixed obscure glazing applied to any part of the window below 1.6m above floor level.

C6. Overlooking from or to private open space areas is to be reduced by ensuring that second storey elements of a dwelling, secondary dwelling or dual occupancy are designed and screened to minimise the potential for overlooking of the private open space of adjoining dwellings.

C7. Where potential overlooking from a dwelling, secondary dwelling or dual occupancy cannot be avoided, views of private open space areas may be obscured in the following ways:

(a) by solid translucent screens or perforated panels or trellises, which have a maximum of 30% openings and that are designed to blend in with the proposed redevelopment, and are to be permanent components of the structure and difficult to alter,

(b) by retention or planting of dense mature vegetation on the development site, if used in conjunction with C7 (a).

C8. The setback between shared driveways or access ways (including a right of carriageway) and the habitable room windows of a dwelling is to be no less than 1.5m.

F1.1.3. Acoustic Privacy

Explanation

Low density residential development should be designed to minimise noise intrusion for dwellings. Clever layout and design can serve to improve acoustic

amenity, particularly in regard to positioning of noise generating rooms such as living areas and private open space.

Objectives

O2. To ensure that low-density residential development is located and designed to minimise the impact of noise transmission between dwellings and from significant external noise sources such as rail corridors and busy roads.

Controls

C1. Private open space areas and associated outdoor facilities including swimming pools, tennis courts and BBQ areas are to be located away from noise sensitive rooms of adjoining dwellings.

C2. Operating plant including air conditioning systems and pool pumps are to be located away from noise sensitive rooms of adjoining dwellings.

C3. Residential development adjacent to a rail corridor or a classified road is to be located and designed to ameliorate potential noise impacts arising from the adjacent rail corridor or classified road. Refer to requirements in State Environmental Planning Policy (Transport and Infrastructure) 2021 and the NSW Department of Planning document Development near Rail Corridors and Busy Roads – Interim Guideline.

F1.1.4. Sunlight access

Explanation

Adequate solar access contributes to the health and amenity of low density residential development and its inhabitants. Good solar access also reduces reliance on artificial lighting and heating which has subsequent financial and environmental benefits.

Note: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of sunlight access Council may refer to the Planning Principle established in *The Benevolent Society v Waverley Council [2010] NSWLEC 1082* to guide the decision making process.

Objectives

O1. To ensure that low-density residential development is located and designed to optimise solar access to living areas and private open space, and to maintain reasonable solar access to adjacent properties.

Controls

C1. Locate and design development so that between the hours of 9am and 3pm on 21 June:

(a) a total area of at least 1m² of living room windows associated with the development receive a minimum of 3 hours of unobstructed sunlight, and

(b) at least 50% of private open space areas (or the principal area of private open space in the case of multi dwelling housing) associated with the development receive a minimum of 3 hours of unobstructed sunlight.

C2. Locate and design development so that between the hours of 9am and 3pm on 21 June:

(a) a total area of at least 1m² of living room windows associated with neighbouring development receive a minimum of 3 hours of unobstructed sunlight, and

(b) at least 50% of private open space areas or the principal area of private open space in the case of multi dwelling housing associated with development on adjoining allotments receive a minimum of 3 hours of unobstructed sunlight.

C3. Where pre-development sunlight access enjoyed by development on adjoining allotments is less than the outcomes prescribed in C2, new development is not to create any additional overshadowing for that development.

C4. Shadow diagrams for 9.00 am, 12.00 pm and 3.00 pm on the winter solstice (21 June) are to be submitted with a development application where building comprising two storeys or more (or a building that is of a similar scale and massing to a two storey building) is proposed.

Note: Where fences, evergreen trees and the like are likely to impact solar access, these elements should be accounted for in shadow diagrams.

Note: Council may request that shadow diagrams be submitted for single storey buildings where solar access is deemed to be an area of concern.

F1.1.5. Views

Explanation

Many dwellings and public places in the Blue Mountains enjoy bushland and escarpment views which contribute to the amenity of the property. New

development should be sited and designed to minimise the impact on views from adjoining and nearby properties where practicable.

Notes: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of view sharing Council may refer to the Planning Principle established in *Tenacity Consulting v Warringah Council [2004] NSWLEC 140* to guide the decision making process.

Objectives

O1. To ensure that view loss from adjoining or nearby properties is minimised without unreasonably limiting the development potential of a site.

Controls

C1. Locate and design development to allow for view sharing ensuring that existing views enjoyed by surrounding properties and from public open spaces are not unreasonably affected.

F1.1.6. Driveways and parking

Explanation

The location and design of driveways are key considerations when planning for development. Driveways that are appropriately located serve to maintain the safety and functionality of the public road network and allow for the retention of on-street parking.

The location and design of parking facilities such as garages, carports and landings are an important determinant of streetscape appearance. Parking facilities that are well designed and thoughtfully positioned do not form a visually prominent built element in the streetscape.

Objectives

O1. To ensure that low-density residential development provides sufficient and convenient parking for residents.

O2. To ensure garages, carports, driveways and hard stand areas used for parking do not visually dominate the streetscape or building façade.

O3. To ensure that the location and design of driveways, parking spaces and other areas used for the movement of motor vehicles are efficient, safe and convenient and have minimal impact on the provision of on-street parking.

Controls

Driveway

C1. One driveway is permitted on each road frontage of an allotment.

C2. Provide driveways from a secondary street or rear lane in preference to the primary street frontage where practicable.

C3. Driveways are to be positioned so that on-street parking and landscaping on the site is maximised, and removal or damage to existing street trees is avoided.

C4. Driveway widths are to comply with *Australian Standard 2890.1 Parking Facilities – Off-street car parking* and be a minimum of 3m wide and no wider than the parking structure to which the driveway relates other than as necessary to enable vehicles to access car parking spaces.

C5. Within the road reserve, driveways are to be constructed of reinforced concrete, at least 150mm thick, on an approved subgrade.

C6. Within the property, driveways may be constructed of porous materials such as compacted crushed stone, pebble, gravel and semiporous pavers, where slopes are negligible.

C7. Within the property, driveways on slopes shall be constructed in accordance with *Part F1 - Table 3*:

Part F1 - Table 3: Driveway construction

Slope	Minimum construction requirement
Less than 10%	All weather gravel
10% – 16%	Sealed (i.e. pavers, two coat seal, asphaltic concrete or concrete)
Greater than 16%	Asphaltic concrete or concrete.

C8. Where possible, driveways are to be drained to adjoining landscaped areas.

C9. A driveway should be setback a minimum 1m from side boundaries to provide for landscaping or pervious area between the driveway and the side boundary.

C10. On busy roads, roads with poor sight distance or on steep driveways, a turning facility may be required to ensure safe forward entry and exit.

Parking

C11. On-site parking is to be provided in accordance with the parking rates table provided in Part E2 Traffic, Parking and Access.

C12. Garages and car parking areas are to be located behind the front alignment of buildings and are not to form a visually prominent element of the streetscape.

C13. The amount of street frontage (including the front elevation) of a dwelling house that may be taken up by openings for garages or carports is limited to:

(a) a maximum of 4m where the width of the allotment is less than 15m, or

(b) a maximum of 6m where the width of the allotment is equal to or greater than 15m.

C14. Notwithstanding C14, Council may consider openings for garages and carports that are greater than the limits prescribed where:

(a) the design is visually appropriate and does not detract from the streetscape, and

(b) the part of the garage or carport opening that exceeds the prescribed limit is setback behind other garages by at least 1m.

F1.1.7. Dual occupancy

Explanation

Dual occupancy means two dwellings on one lot of land, which can be either attached or detached. The controls in this part supplement the controls prescribed in earlier parts of the DCP and prevail over those controls in the case of any inconsistency.

Objectives

O1. To ensure that development for the purpose of a dual occupancy achieves a built form and streetscape appearance that is consistent with the desired character of an area, protects residential amenity and provides adequate landscaping opportunities.

Controls

Building separation

C1. The dwellings of a detached dual occupancy are to be separated by a minimum distance of 6m or alternative distance as required such that:

(a) visual separation between the two dwellings is achieved, and

(b) adequate visual privacy, acoustic privacy and solar access can be achieved for each of the dwellings, and

(c) the area between the dwellings provides for the retention of existing vegetation and/or ample space for landscaping.

Orientation and appearance

C2. The form, design and appearance of a dual occupancy, including the roof pitch, colours and materials, shall be complementary to the adjoining and adjacent buildings and any existing dwelling house on the land.

C3. The appearance and location from the primary street frontage of a dual occupancy should retain or enhance the existing character and appearance of a low-density residential area and shall avoid, in all but exceptional circumstances, a mirror-reversed design.

C4. Dual occupancies located on a corner allotment shall be designed to separately address the primary and secondary street frontages, where practicable.

C5. A professionally prepared and detailed Landscape Plan is to be submitted as a component of any development application for dual occupancy. The plan is to demonstrate the manner in which the development will achieve high quality landscape outcomes.

C6. Landscaping is to incorporate plantings of sufficient number and complexity to ensure the promotion of a garden setting and the enhancement of privacy and amenity for each of the dwellings and adjacent properties.

C7. Landscape planting is to be of an appropriate scale to ensure that the mature landscape contributes to the streetscape character and amenity.

C8. All plantings of feature trees and screening shrubs are to be provided in an advanced stage of growth at planting (25 litre containers for shrubs and minimum 45 litre container for trees or equivalent if purchasing bare rooted specimens). Trees are to be at least 2 metres in height at planting.

Note: the landscaping controls prescribed above supplement the objectives and controls prescribed in Part C3 Landscaping.

F1.1.8. Secondary dwellings

Explanation

Secondary dwellings may also be referred to as a granny flat. The controls contained in this part supplement the controls prescribed in earlier parts of the DCP and prevail over these controls in the case of any inconsistency.

Note: Secondary dwellings may be constructed as complying development on land within **Zones R1 General Residential, R2 Low Density Residential** and **R3 Medium Density Residential** provided the land upon which they are proposed and the development itself satisfies the provisions and relevant development standards of *State Environmental Planning Policy (Housing) 2021*.

Objectives

O1. To ensure that development for the purpose of a secondary dwelling is of an appropriate scale, thoughtfully positioned and is compatible with the desired residential character of the locality.

Controls

Lot requirements

C1. Development for the purposes of a secondary dwelling may only be carried out on a lot that at the completion of the development will have only one principal dwelling and one secondary dwelling.

C2. Subdivision of an approved secondary dwelling for the purposes of making the secondary dwelling and the principal dwelling available for separate sale is not permitted.

Height & setbacks

C3. Where a secondary dwelling is being incorporated into a new development, or where part of an existing dwelling is being converted into a secondary dwelling, the secondary dwelling must comply with the height and setback requirements for single dwellings.

Building design & articulation

C4. The design and location of a secondary dwelling must complement the style, scale and appearance of the primary dwelling on the allotment.

C5. Development for the purposes of a secondary dwelling on a lot with a frontage to a secondary road (i.e. corner lot or parallel roads) is to result in either the principal dwelling or the secondary dwelling having a window to a habitable room in the building wall that faces a secondary road.

F1.2. Medium Density Residential

This part contains objectives and controls which apply to development for the purposes of medium density housing, including the following types of development defined in the LEP 2015:

- Multi dwelling housing
- Residential flat buildings
- Attached dwellings
- Boarding Houses
- Seniors Housing

Note: *State Environmental Planning Policy (Housing) 2021* applies to the erection of a new residential flat building (RFB), the substantial redevelopment or refurbishment of an existing RFB or the conversion of an existing building to an RFB.

Note: Part F7 contains additional provisions for seniors housing.

F1.2.1. Building articulation and separation

Explanation

The spatial separation of buildings and articulation of built form is an important determinant of massing and streetscape appearance. Adequate building separation and thoughtful articulation 'softens' the visual mass of medium density residential development, improves amenity and allows for landscaping opportunities.

Objectives

O1. To ensure that building separation achieves a built form and streetscape appearance that is consistent with the desired character of an area, protects residential amenity and provides adequate landscaping opportunities.

Controls

C1. Building separation between detached dwellings within a seniors housing development, a multi dwelling housing development or residential flat building is to comply with minimum distances prescribed in *Part FI - Table 4*.

Part F1 - Table 4: Separation distances based on number of storeys

Number of storeys	Room type	Minimum separation distance
Up to 2 storeys	All room types	6m
Greater than 3 storeys	Between non-habitable rooms	6m
	Between habitable rooms or balconies and non-habitable rooms	9m
	Between habitable rooms or balconies	12m

C2. Notwithstanding C1, consideration will be given to an alternative separation distance where it can be demonstrated that:

(a) the scale and massing of the development is visually appropriate and consistent with streetscape appearance, and

(b) adequate visual privacy, acoustic privacy and solar access can be achieved for each of the dwellings, and

(c) the area between the dwellings provides for the retention of existing vegetation and/or ample space for landscaping.

(d) Reduce the visual bulk of roof forms by breaking down the roof into smaller elements, rather than having a single uninterrupted roof structure.

C3. Reduce the visual impact of unrelieved walls by limiting length of walls and / or articulating built form, particularly on narrow side and rear setbacks.

F1.2.2. Private open space

Explanation

Private open space areas allow for passive recreation and contribute to the health and amenity performance of medium density residential development.

Objectives

O1. To ensure that private open space functions as an accessible extension to the living area of a dwelling, is designed to protect privacy and optimise solar access, and allows for passive recreation.

Controls

C1. For each dwelling of a multi dwelling housing development, provision is to be made for a minimum area of private open space, based on the number of bedrooms in the dwelling, as specified in *Part FI - Table 5*.

Part FI - Table 5: Minimum area of private open space based on number of bedrooms

Number of bedrooms	Minimum area of POS
One (including bedsits)	25m^2
Two	40m^2
Three +	50m^2

C2. Private open space provided to comply with C1 is to include at least one area that:

(a) has reasonable access to a living area of the subject dwelling, and

(b) is on a compatible level with a living area of the subject dwelling, and

(c) has a slope of less than 10%, and

(d) complies with the minimum area and minimum width, based on the number of bedrooms in the dwelling, as specified in *Part FI - Table 6*.

Part FI - Table 6: Principal area of private open space based on number of bedrooms

Number of bedrooms	Minimum area	Minimum width
One (including bedsits)	15m^2	3m
Two	20m^2	3.5m
Three +	25m^2	4m

C3. For each dwelling at ground level in a residential flat building, provide at least one area of private open space, with an area of not less than 25m^2 and a depth of not less than 4m.

C4. For each dwelling above ground level in a residential flat building, provide at least one area of private open space in the form of a balcony, with an area of not less than 10m^2 and a minimum depth of 2m.

F1.2.3. Communal open space

Explanation

Communal open space supplements the provision of private open space in residential flat building development. Communal open space facilitates recreation and social opportunities and enhances the amenity and appearance of the development.

Note: Communal open space areas exclude driveways, parking areas, essential access paths such as fire escape routes, indoor gyms and clothes drying areas.

Objectives

O1. To ensure the provision of a functional and accessible area of communal open space for passive recreation that is designed to protect privacy and optimise solar access.

Controls

C1. Where a residential flat building is proposed, provide an area of communal open space that is at least 25% of the site area and has a minimum dimension of 6m.

C2. Notwithstanding C1, Council may consider an area of communal open space that does not satisfy the minimum area requirements where it can be demonstrated that:

(a) Residential amenity is provided in the form of increased private open space for dwellings within the development; or

(b) Residential amenity is provided by way of a contribution to public open space that is reasonably accessible to residents of the development.

C3. Communal open space provided to comply with C1 is to include at least one area that:

(a) is located at ground level, and

(b) comprises a principal area of not less than 50m^2, with a slope of less than 10%, and

(c) is highly visible and directly accessible to as many dwellings as can practically be achieved, and

(d) is designed and located to minimise potential overshadowing from adjoining buildings and to promote natural airflow, and

(e) incorporates acoustic treatments, where necessary and practical, to minimise disturbance to residents of adjoining dwellings.

F1.2.4. Landscaping

Multi dwelling housing development and seniors housing development generally results in higher urban densities and there are subsequently fewer opportunities to achieve good landscaping outcomes. For this reason, it is important that existing vegetation and desired landscape outcomes are considered in more detail at the development design stage.

Note: The landscaping controls prescribed below supplement the objectives and controls prescribed in Part C3 Landscaping.

Objectives

O1. To ensure a superior landscape outcome which complements and enhances the multiplicity of design and functional outcomes associated with multi dwelling housing.

Controls

C1. A professionally prepared and detailed Landscape Plan is to be submitted as a component of any development application for multi dwelling housing.

C2. Landscaping is to incorporate plantings of sufficient number and complexity to ensure the promotion of a garden setting and the enhancement of privacy and amenity for each of the dwellings and adjacent properties.

C3. Landscape planting is to be of an appropriate scale to ensure that the mature landscape contributes to the character and amenity of the locality.

C4. Landscaped areas are to include an appropriate number of retained or re-established canopy trees to mitigate the heat island effect of extensive hardstand areas.

C5. Rapid establishment of the landscape is necessary. All plantings of feature trees and screening shrubs are to be provided in an advanced stage of growth at planting (25 litre containers for shrubs and minimum 45 litre container for trees or equivalent if purchasing bare rooted specimens). Trees are to be at least 2 metres in height at planting.

C6. Use landscape planting of appropriate height and depth to enhance privacy between communal open space areas and private dwellings, particularly in relation to overlooking balconies, terraces or bedroom windows.

C7. Plant materials must be compatible with pedestrian access, safety and amenity, and must not produce high levels of leaf, flower or fruit debris that may contribute to slip hazard, nor produce barbs, thorns, spines or allergenic substances likely to cause injury or harm to pedestrians.

C8. An appropriately sized and fully installed automatic irrigation system is to be provided throughout all planted areas to ensure satisfactory maintenance of the landscaping. The system shall provide full coverage to all the planted areas with no overspray onto driveways, pathways or common space areas.

F1.2.5. Visual privacy

Explanation

Medium density residential development should be designed to optimise visual privacy by minimising overlooking and cross viewing to adjoining dwellings. Complete visual privacy is often difficult to achieve in the urban context and is not necessarily desirable. Some level of cross viewing between properties is beneficial as this serves to improve security through passive surveillance.

Note: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of privacy Council may refer to the Planning Principle established in *Meriton v Sydney City Council [2004] NSWLEC 313* to guide the decision making process.

Objectives

O1. To ensure that medium density residential development is designed to provide a reasonable level of privacy for dwellings, and to protect privacy of adjacent and nearby properties.

Controls

C1. Proposed habitable room windows with a direct outlook to habitable room windows or private open space of an adjacent dwelling are to have a separation distance of no less than 6m.

C2. Where proposed habitable room windows will have a direct outlook to habitable room windows or private open space of an adjacent dwelling and are separated by less than 9m, the window shall:

(a) be offset a minimum of 1m from the edge of the proposed window to the edge of the existing window, or

(b) have sill heights of at least 1.6m above floor level, or

(c) have fixed obscure glazing applied to any part of the window below 1.6m above floor level.

C3. Overlooking from or to private open space areas is to be reduced by ensuring that any upper level balconies are designed and screened to minimise the potential for overlooking of the private open space of any lower level of adjoining dwellings.

C4. Where potential overlooking cannot be avoided, views of private open space areas may be obscured in the following ways:

(a) by solid translucent screens or perforated panels or trellises, which have a maximum of 25% openings and that are designed to blend in with the proposed redevelopment, and are to be permanent components of the structure and difficult to alter,

(b) by retention or planting of plant material of appropriate mature height and density on the development site, if used in conjunction with (a)

(c) Landscape plant material selection, planting style and placement must be responsive to the solar access characteristics of the private open space.

C5. The setback between shared driveways or access ways (including a right of carriageway) and the habitable room windows of a dwelling is to be no less than 1.5m.

F1.2.6. Acoustic privacy

Explanation

Medium density residential development should be designed to minimise noise intrusion for dwellings. Clever layout and design can serve to improve acoustic amenity, particularly in regard to positioning of noise generating rooms such as living areas and private open space.

Objectives

O1. To ensure that medium density residential development is located and designed to minimise the impact of noise transmission between dwellings and from significant external noise sources such as rail corridors and busy roads.

Controls

C1. Private open space, communal open space and associated outdoor facilities including swimming pools, tennis courts and BBQ areas are to be located away from noise sensitive rooms of adjoining dwellings.

C2. Operating plant including air conditioning systems and pool pumps are to be located away from noise sensitive rooms of adjoining dwellings.

C3. Residential development adjacent to a rail corridor or a classified road is to be located and designed to ameliorate potential noise impacts arising from the adjacent rail corridor or classified road. Refer to requirements in *State Environmental Planning Policy (Transport and Infrastructure) 2021* and the NSW Department of Planning document Development near Rail Corridors and Busy Roads – Interim Guideline.

F1.2.7. Sunlight access

Explanation

Adequate solar access contributes to the health and amenity of medium density residential development and its inhabitants. Good solar access also reduces reliance on artificial lighting and heating which has subsequent financial and environmental benefits.

Note: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of sunlight access Council may refer to the Planning Principle established in *The Benevolent Society v Waverley Council [2010] NSWLEC 1082* to guide the decision making process.

Objectives

O1. To ensure that medium density development is located and designed to optimise solar access to living rooms and private opens space areas, and to maintain reasonable solar access to adjacent properties.

Controls

C1. Locate and design development so that between the hours of 9am and 3pm on 21 June:

(a) at least 1m^2 of living room windows receive a minimum of 3 hours of unobstructed sunlight, and

(b) at least 50% of private open space areas (or the principal area of private open space in the case of multi dwelling housing or seniors housing) receive a minimum of 3 hours of unobstructed sunlight, and

(c) at least 30% of the required communal open space area receives a minimum of 3 hours of unobstructed sunlight.

Note: This control applies to at least 70% of dwellings within a residential flat building.

C2. Locate and design development so that between the hours of 9am and 3pm on 21 June:

(a) at least 1m^2 of living room windows associated with neighbouring development receive a minimum of 3 hours of unobstructed sunlight, and

(b) at least 50% of private open space areas (or the principal area of private open space in the case of multi dwelling housing or seniors housing) associated with development on adjoining allotments receive a minimum of 3 hours of unobstructed sunlight.

(c) landscape plant material selection, planting style and placement must be responsive to the solar access characteristics of the private open space.

C3. Where pre-development sunlight access enjoyed by development on adjoining allotments is less than the outcomes prescribed in C2, new development is not to create any additional overshadowing for that development.

C4. Limit number of single-aspect dwellings with a southerly aspect (SW-SE) to a maximum of 10% of the total dwellings proposed in a residential flat building.

C5. Shadow diagrams for 10.00 am, 12.00 pm and 2.00 pm on the winter solstice (21 June) are to be submitted with a development application where a building of two storeys or more is proposed.

Note: Council may request that shadow diagrams be submitted for single storey buildings where solar access is deemed to be an area of concern.

Note: Where fences, evergreen trees and the like are likely to impact solar access, these elements should be accounted for in shadow diagrams

F1.2.8. Views

Explanation

Many dwellings and public places in the Blue Mountains enjoy bushland and escarpment views which contribute to the amenity of the property. New development should be sited and designed to minimise the impact on views, where practicable.

Notes: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of view sharing Council may refer to the Planning Principle established in *Tenacity Consulting v Warringah Council [2004] NSWLEC 140* to guide the decision making process.

Objectives

O1. To ensure that view loss from adjoining or nearby properties is minimised without unreasonably limiting the development potential of a site.

Controls

C1. Locate and design development to allow for view sharing ensuring that existing views enjoyed by surrounding properties and from public open spaces are not substantially affected.

F1.2.9. Driveways and parking

Explanation

The location and design of driveways are key considerations when planning site layout. Driveways that are appropriately located serve to maintain the safety and functionality of the public road network and allow for the retention of on-street parking.

The location and design of parking facilities such as basement parking, garages and landings are an important determinant of streetscape appearance. Parking facilities that are well designed and thoughtfully positioned do not form a visually prominent built element in the streetscape.

Objectives

O1. To ensure that medium density residential development provides sufficient and convenient parking for residents without compromising streetscape appearance or traffic safety and function.

Controls

Driveways

C1. One driveway is permitted on each road frontage of an allotment.

C2. Notwithstanding C1, Council may consider a second driveway where it can be demonstrated that:

(a) an allotment has a frontage of substantial width, and

(b) ample on-street parking is available in the locality, and

(c) traffic and pedestrian safety will not be compromised.

C3. Provide driveways from a secondary street or rear lane in preference to the primary street frontage where practicable.

C4. Driveways are to be positioned so that on-street parking and landscaping on the site is maximised, and removal or damage to existing street trees is avoided where possible.

C5. Driveway widths are to comply with *Australian Standard 2890.1 Parking facilities – Off-street car parking* and be a minimum of 3m wide and no wider than the parking structure to which the driveway relates other than as necessary to enable vehicles to access car parking spaces.

C6. Within the road reserve, driveways are to be constructed of reinforced concrete, at least 150mm thick, on an approved subgrade.

C7. Within the property, driveways shall be constructed in accordance with *Part F1 - Table 7:*

Part F1 - Table 7: Driveway construction

Slope	Minimum construction requirement
Less than 16%	Sealed (i.e. pavers, two coat seal, asphaltic concrete or concrete)
Greater than 16%	Asphaltic concrete or concrete.

C8. Driveways associated with medium density residential development shall be designed to:

(a) enable vehicles to enter and leave the site in a forward direction, and

(b) incorporate passing bays at least every 30m.

C9. The alignment of driveways shall:

(a) be located at least 1m from any side boundary to provide for landscaping or pervious area between the driveway and the side boundary, and

(b) be varied to avoid a 'gun barrel' appearance.

C10. Shared driveways are to be set back a minimum of 1.5m from windows of habitable rooms or a minimum of 1m where the floor level of the habitable room is at least 1m above the driveway at the window opening.

Parking

C11. On-site parking is to be provided in accordance with the parking rates table provided at E2 Traffic, Parking and Access.

C12. Garages and car parking areas are to be located behind the front alignment of buildings and are not to form a visually prominent element of the streetscape.

C13. Stacked parking may be proposed where two spaces are provided for a specific dwelling.

C14. Visitor parking is to be clearly identified by way of pavement marking or discreet signage, and shall be conveniently located.

Basement parking

C15. Basement car parking shall:

(a) be located within the limits of the building footprint and project no more than 1m above natural ground level, and

(b) facilitate natural ventilation, and

(c) incorporate lighting in accordance with the Australian Standard 1680.2.1 Interior and workplace lighting – Specific applications – Circulation spaces and other general areas.

F1.3. Ancillary Development

Explanation

Development ancillary to a dwelling house commonly includes fences, studios, sheds and swimming pools/spas. Ancillary development should be visually compatible with the design of the subject building and sympathetic to the character of the locality.

Note: Some forms of ancillary development may be categorised as exempt or complying development pursuant to *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 (Codes SEPP).*

F1.3.1. Fences

Note: When proposing a side or rear fence the proponent must also refer to the requirements of, and understand their obligations under, the *Dividing Fences Act 1991*.

Objectives

O1. To ensure that fences for residential development are appropriately scaled and allow for passive surveillance between public and private realms.

O2. To ensure that rear and side fencing will assist in providing privacy to private open space areas.

O3. To ensure boundary fencing is of a high quality and does not detract from the streetscape.

Controls

Residential & Environmental Zones

C1. The maximum height of a fence is to comply with the height limits prescribed in *Part F1 - Table 8*.

Part F1 – Table 8: Maximum height of fence

Location	Maximum height above ground level
Primary frontage	1.2m
Secondary road frontage	1.2m between the front boundary and the front building line 1.8m between the front building line and the rear boundary
Common boundary	1.8m 1.2m between the front boundary tapering to 1.8m at the front building line 1.2m if masonry construction

C2. Fences installed on a primary road frontage shall be open for at least 20% of the area of the fence that is more than 400mm above ground level, with any individual solid element of the fence above this height being no more than 350mm in width with a minimum aperture of 25mm.

C3. If a lot has a frontage to a secondary road(s), C2 applies to 50% of contiguous secondary road boundaries, measured from the corner with the primary road boundary.

C4. Despite C1, if the fence is erected on a sloping site and stepped to accommodate the fall in the land:

(a) a fence that is required to be not more than 1.2m above ground level, must not be more than 1.5m above ground level at each step, and

(b) a fence that is required to be not more than 1.8m above ground level, must not be more than 2.2m above ground level at each step.

C5. Long sections of fencing on a secondary road frontage are to include recessed portions located at regular intervals along the length of the fence for the purpose of additional landscaping.

C6. Despite C1, where traffic from a classified road is likely to cause an adverse impact on the amenity of the residence, Council may consider a fence up to 1.8m in height of solid construction but only when its appearance is softened by:

(a) providing a setback from the property boundary by a distance equivalent to the height of the fence, and

(b) landscaped planting is provided between the fence and the property boundary, with a mature height of at least 1.5m, and

(c) incorporating openings, and a variation of colours, texture or materials, for visual interest.

Rural Zones

C7. The maximum height of a fence is to be no higher than 1.8m above ground level unless the fence is erected on a sloping site and is stepped to accommodate the fall in the land in which case it may not be more than 2.2m above ground level at each step.

C8. A fence shall not include any masonry construction that extends more than 3m from either side of the entrance to the property from the primary road.

C9. Fences are to be constructed using post and wire or post and rail.

C10. If the fence includes an entrance gate, the gate shall not open outwards.

F1.3.2. Detached studios

Explanation

A detached studio is established in conjunction with, and on the same lot as, a dwelling house and is not capable of being occupied as a separate dwelling. Detached studios may be used for purposes such as a bedroom, an artist's workspace, a home office, a hobby room, a rumpus room, a teenagers 'retreat' or similar habitable room.

Note: Detached studios may be constructed as complying development in R1, R2 and R3 zones provided the land upon which they are proposed and the development itself satisfies the provisions and relevant development standards of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Objectives

O1. To ensure that development for the purpose of a detached studio is of an appropriate scale, thoughtfully positioned and is compatible with the desired residential character of the locality.

Controls

C1. A detached studio is to be located at least 1m behind behind the building line of the primary street frontage.

C2. Not more than one detached studio may be located on a lot.

C3. Cooking and laundry facilities are not permitted in detached studios.

C4. The maximum gross floor area of a detached studios is 36m².

C5. An application for, or incorporating, a detached studio is to be supported by a floor plan showing all proposed facilities as well as a statement of use.

Note: The statement of use assists in determining which facilities, if any, would be permitted given the stated use of the detached studio. The following facilities may be permitted within the detached studio depending on the proposed use:

- A shower / toilet facility;
- A sink (free standing or in a bench top) with a hot and cold water supply for washing hands and / or cleaning art / hobby equipment only;
- Other facilities which are appropriate for the proposed use and do not provide for separate occupancy.

F1.3.3. Outbuildings

Objectives

O1. To ensure that outbuildings are of an appropriate scale and have regard to residential amenity.

O2. Ensure that the form, scale and design of outbuildings are compatible with the established character and setting of the locality.

O3. Manage the cumulative impact of outbuildings, particularly the visual impact when viewed from the public domain and neighbouring properties.

Controls

C1. Outbuildings are to be located at least 1m behind the building line of any road frontage.

C2. Notwithstanding C1, an outbuilding may be located forward of the building line on land within **Zone RU2 Rural Landscape, RU4 Primary Production Small Lots or C3 Environmental Management**, where it can be demonstrated that:

(a) the form, scale and design of the outbuilding is visually appropriate and is consistent with streetscape appearance in the locality, and

(b) the outbuilding is suitably screened by vegetation and will not present as a prominent element in the streetscape.

C3. The maximum height of an outbuilding is 4.5m above the ground level (existing) at any point.

C4. The floor area of an outbuilding is to comply with the areas prescribed in *Part F1 - Table 9.*

Part F1 – Table 9: Maximum floor area for sheds based on lot size

Lot size	Maximum floor area
Less than 1,200m^2	44m^2
Over 1,200m^2	68m^2

C5. The form and scale of the outbuilding, including roof forms, shall be consistent with, or complementary to, the form and massing of buildings in the locality.

C6. Building materials shall complement the materials commonly used in buildings in the locality and, to the extent that the structure is comprised of metal components, be low reflective.

C7. Council may require that the outbuilding incorporate appropriate acoustic attenuation measures to ensure that residential amenity is not unduly impacted.

C8. An outbuilding is not to be habitable.

F1.3.4. Swimming pools and spas

Note: *The Swimming Pools Act 1992* prescribes requirements which apply to swimming pools (both outdoor and indoor) that are situated, or proposed to be constructed or installed, on premises on which a residential building, a moveable dwelling, or tourist and visitor accommodation is located.

Objectives

O1. To minimise the visual impact of swimming pools and spas and maintain a reasonable level of visual and acoustic privacy for neighbouring properties.

O2. To ensure that swimming pool / spa location and design maximises safety.

Controls

C1. Swimming pools and spas should be located at the rear of properties.

C2. The minimum setback from the outside edge of the spa and/or pool coping/ decking/ paving to the side and/or rear boundary is:

- 1m - where a pool / surrounds is not more than 500mm above existing ground at any point.
- 1.5m - Where a pool / surrounds is more than 500mm above existing ground at any point.

Any landscaping within the setback area shall comply with the requirements of the Swimming Pools Act.

C3. Position swimming pools or spas away from noise sensitive rooms (i.e. bedrooms) of both the subject dwelling and neighbouring dwellings.

C4. Mechanical equipment associated with swimming pools and spas are to be housed in an enclosure that is soundproofed.

C5. Position any pool related decking away from the side and rear boundaries of the property to minimise adverse privacy impacts on the neighbours.

C6. Where illumination is proposed, use low level lighting and direct away from adjoining properties.

F1.3.5. Tennis Courts

Objectives

O1. To ensure that tennis courts are appropriately located and do not adversely affect the amenity of the locality.

Controls

C1. Tennis courts are to be located behind the building line of any road frontage.

C2. Tennis courts shall not involve cut or fill of more than 1m below or above existing ground level.

C3. Tennis courts are to be set back a minimum of 5m from a side or rear boundary.

C4. Position tennis courts away from noise sensitive rooms (i.e. bedrooms) of both the subject dwelling and neighbouring dwellings.

C5. Screen planting should be provided between a tennis court and adjoining properties.

C6. The colour of any associated fencing is to be recessive (e.g. black) to minimise visual impact.

C7. Flood lighting is generally not permitted unless it can be demonstrated that the lighting and use of the court at night will not interfere with neighbour amenity.

PART F2
RETAIL AND COMMERCIAL DEVELOPMENT



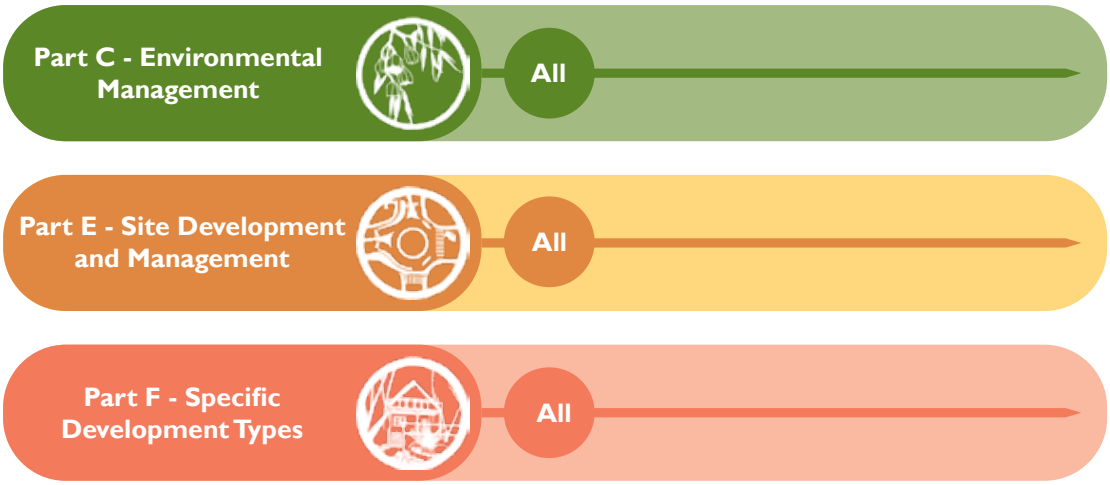
Introduction

Retail and commercial enterprises provide an essential service for the community. In the Blue Mountains, these businesses serve both the permanent residential population as well as an itinerant tourist population.

Additionally, villages and towns are separated by bushland and areas of World Heritage National Park, due to the linear layout of the local government area, which stretches along the Great Western Highway. This separation contributes to the creation of distinct village character for which the Blue Mountains is known, but it also highlights the need for establishment and rationalisation of core businesses and services within the each town centre. The provision of retail shops, restaurants and business services as well as health, recreation and education facilities are all important elements for the establishment of a community.

To the extent of any inconsistency between this part and any other part of the DCP (with the exception of Part G Locality Management), this part will prevail.

Read in conjunction with:



Relationship to other legislation and documents:

- *State Environmental Planning Policy (Exempt and Complying Codes) 2008*

Submission requirements:

One or more of the following types of reports may need to accompany a development application:

- *Acoustic Impact Assessment*
- *Odour Assessment*

F2.1. Building Design and Site Planning

Explanation

Through high quality building design and appropriate site planning, development for commercial and retail purposes can make a positive contribution to the streetscape and provide for functional and inviting access for the general public.

The majority of commercial and retail businesses are located within town centres and immediately surrounding areas. These localities are in the main, identified as precinct areas on the LEP 2015 Built Character Map, and are to meet the particular objectives and controls identified in Part G Locality Management, of this DCP. The following controls are supplementary to Part G, and where there is any inconsistency in the provisions, Part G prevails.

Objectives

O1. To identify key components of urban design to be considered and addressed in development proposals.

O2. To retain and enhance the unique qualities of neighbourhood character and context, by responding to existing features and elements of desired future character.

O3. To ensure that the operation of commercial and retail enterprises minimises impact on the amenity of adjoining and nearby residential land uses.

Controls

C1. New commercial and retail development, including additions and alterations, in precinct areas as identified on the *Built Character Map* in LEP 2015, is to be undertaken in accordance with the relevant provisions in Part B3 Design of this DCP.

C2. New commercial and retail development, including additions and alterations, is to minimise bulk and scale and utilise design elements such as articulation to limit visual intrusion.

F2.2. Parking and Access

Explanation

Development for commercial and retail purposes is often by nature located within main streets and more densely developed areas in the centre of town. In the Blue Mountains, these centres often have heritage value and a development pattern that has been in place since the early commercial development of these areas. The provision of onsite parking within these locations is often difficult, as existing buildings are generally built to the property boundary, particularly within Heritage Conservation Areas and other established areas.

While onsite parking is important to ensure that development does not impact on adjoining neighbours and the local street network, this part of the DCP provides some flexibility for the provision of onsite parking in locations (particularly within town centres) where physical site constraints mean it is not possible or aesthetically desirable to provide onsite parking (e.g. the site is fully developed, or provision of off street parking in the frontage of a heritage item or in areas of significant streetscape value).

This section also provides controls for the location and design of parking areas for larger commercial and retail development.

Objectives

O1. To ensure that commercial and retail development provide onsite parking that is adequate for the land use, without compromising streetscape appearance or traffic safety and function.

O2. To provide flexibility where compliance with parking rates may not be possible due to physical site constraints, or may result in an adverse impact on streetscape, amenity or character.

Controls

Driveways

C1. Only one driveway is to be provided at each road frontage of an allotment.

C2. Notwithstanding C1, Council may consider a second driveway where it can be demonstrated that:

(a) an allotment has a frontage of substantial width, and

(b) it is required for manoeuvrability within the site (due to the operation of the commercial use or the size of vehicle required to access the site), and

(c) sufficient on-street parking is available in the locality, and

(d) traffic and pedestrian safety will not be compromised.

C3. The alignment of driveways shall be located at least 2m from any side boundary to provide space for landscaping and pervious area, except in town centres where building site cover precludes that outcome.

C4. Driveways are to be positioned so that on-street parking and landscaping on the site is maximised, and removal or damage to existing street trees is avoided.

C5. Driveway widths are to comply with *Australian Standard 2890.2 Parking facilities – Off-street commercial parking facilities* and be a minimum of 3m wide and no wider than the parking structure to which the driveway relates other than as necessary to enable vehicles to access car parking spaces.

C6. Driveways associated with large scale commercial development shall be designed to:

(a) enable vehicles to enter and leave the site in a forward direction, and

(b) be capable of accommodating the entry and exit manoeuvres of the largest vehicle expected to enter the site.

Parking

C7. On-site parking is to be provided in accordance with the parking rates table provided at Part E2 Traffic, Parking and Access of this DCP, *Part E2: Table 1*.

C8. Car parking areas should preferably be located behind the front alignment of buildings and are not to form a visually prominent element of the streetscape.

C9. Where parking cannot be located behind the front building alignment, parking areas are to be designed to provide appropriate space for landscaping; both on the boundaries and along street frontages, as well as at regular intervals between parking spaces.

Basement parking

C10. Basement car parking shall:

(a) be located within the limits of the building footprint and project no more than 1m above finished ground level, and

(b) facilitate natural ventilation, and

(c) incorporate lighting in accordance with the Australian Standard 1680.2.1 Interior and workplace lighting – Specific applications – Circulation spaces and other general areas.

C11. Separate pedestrian access to buildings is to be provided.

F2.2.1. Exceptions to parking rates

C1. Compliance with the parking rates in Part E2: Table 1 is not generally required where:

(a) the proposed commercial or retail development (including any associated shop top housing) is located within Zone B2 Local Centre, and

(b) Buildings extend to the front and side property boundaries such that access to the site for parking would not be possible, and

(c) the site does not have rear access or the provision of parking in this part of the site would not be practical or would result in an adverse impact on streetscape character.

C2. Compliance with the parking rates prescribed in Part E2 – Table 1 is not required for development proposed upon land situated between Davies Lane and Ha'penny Lane with a frontage to the eastern boundary of Pioneer Place.

C3. With the exception of C1, a variation sought to the parking rates is to address the following issues (as relevant to the particular development):

(a) Site constraints that inhibit the provision of the required parking onsite,

(b) Justification as to how the parking demand that cannot be accommodated onsite can be managed without adverse impacts on the locality.

(c) A survey of available on-street parking within walking distance from the site at peak parking generation times relevant to the proposed development.

(d) Existing parking facilities already provided prior to the proposed development.

(e) Any complementary uses of the available parking spaces.

(f) The proximity and access to public transport.

(g) Location of local services, employment, retail and recreational facilities.

(h) Safety of vehicles, pedestrians and cyclists.

Note: It is the responsibility of the applicant through the development application and assessment process to demonstrate that the proposed level of parking provision is adequate, or that the overall planning benefits of the proposed development outweigh any parking deficiencies.

F2.3. Landscaping for parking areas

Explanation

Commercial and Retail development, particularly larger scale proposals, generate the need for onsite parking. With reference to Part F2.2 of this DCP, in town centres, this parking requirement may not be able to be provided onsite. However where parking is required onsite it is important that these hard stand areas are designed to accommodate appropriate landscaping, so as to soften the development and contribute to streetscape amenity.

Note: The landscaping controls prescribed below supplement the objectives and controls prescribed in Part C3 Landscaping.

Objectives

O1. To ensure that commercial and retail development is appropriately planned and sited to accommodate landscaped areas within car parks and associated hard stand areas of the site.

Controls

C1. Landscaping is to be used to minimise the physical and visual dominance of car parking and vehicular circulation areas.

C2. Where it is not possible or practical to retain existing trees, new advanced trees are to be provided within the landscaped areas to rapidly reinstate a canopy presence of equivalent stature.

C3. The soil volume provided within planter beds is to be sufficient to ensure successful establishment and growth of selected tree and shrub species. As a guide the following soil volumes (unobstructed root area) are required for tree establishment:

(a) Between 5 and 15m^3 for a small tree (6-8m height with a 5m crown spread); and

(b) Between 20 and 40m^3 for a medium sized tree (10-12m height with a 8m crown spread); and

(c) Between 50 and 80m^3 for a large tree (16-20m height with a 16m crown spread).

C4. Planter beds are to use Gap Graded or "structural" soils in the subsoil layer to assist in the provision of a sustainable growing medium for selected species. Structural subsoil is to also be provided beneath parking bays adjacent to planted trees so as to increase available soil volume.

C5. In order to reduce the potential for damage to tree trunks and to reduce subsequent pruning maintenance, trees are to be located to the centre of planting beds.

C6. Plant materials selected are to be compatible with pedestrian access, safety and amenity. Trees which produce high levels of leaf, flower or fruit debris or large quantities of resin are to be avoided.

C7. Plant spacing, layout and characteristics are to provide adequate opportunities for natural surveillance and the maintenance of required sight lines at egress and entrance points.

C8. Artificial lighting and associated infrastructure is to be located so as to avoid conflict with existing and proposed canopy elements. Ensure adequate space is provided to accommodate mature tree canopy without compromising illumination.

F2.4. Amenity

Explanation

Commercial and Retail development, depending on the nature of the business, can have the potential to impact on the amenity of adjoining and nearby properties. This may be due to the scale or nature of a business or other factors such as noise, odour or potential impacts to adjoining properties in relation to sunlight access or loss of views.

Objectives

O1. To ensure adverse impacts to the amenity of adjoining and nearby properties are minimised.

O2. To provide effective measures, both operational and constructed, to minimise the impacts of operational noise and odour.

O3. To design and locate commercial development to maintain reasonable solar access to adjacent properties.

O4. To minimise view loss from adjoining or nearby properties without unreasonably limiting the development potential of a site.

F2.4.1. Operational Noise and Odour

Explanation

Commercial and retail development includes a number of different land uses, which as a result of differing scale, operational requirements or other factors, have the potential to generate noise or odour which could impact adjoining neighbours. This may be due to loading and unloading, deliveries or fumes from the operation of a kitchen for example. With careful site planning and management these potential impacts can be effectively minimised.

Controls

C1. Operating plant, including air conditioning systems, generators or other equipment, is to be located:

(a) sufficiently distant from any adjoining residential development, and

(b) within an enclosed space to provide for noise attenuation and management of fumes, and

(c) to minimise the visual impact on the streetscape and adjoining development, and may need to be screened to achieve this outcome.

Depending on the scale and type of the development, impact assessments for Noise and Odour may need to be submitted as part of a development application.

C2. Proposed development is to consider the following with regard to hours of operation:

(a) Proximity to residential development should night trading be proposed, and

(b) Deliveries and loading outside of core operating hours with regard to noise and light spill, and

(c) Levels of traffic generation of the proposed development.

F2.4.2. Sunlight access

Explanation

Adequate solar access contributes to the health and amenity, and good solar access also reduces reliance on artificial lighting and heating which has subsequent financial and environmental benefits.

Note: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of sunlight access Council may refer to the Planning Principle established in *The Benevolent Society v Waverley Council [2010] NSWLEC 1082* to guide the decision making process.

Controls

C1. Locate and design development so that between the hours of 9am and 3pm on 21 June:

(a) at least 1m^2 of living room windows associated with neighbouring development receive a minimum of 3 hours of unobstructed sunlight, and

(b) at least 50% of private open space areas associated with development on adjoining allotments receive a minimum of 3 hours of unobstructed sunlight.

C2. Where pre-development sunlight access enjoyed by development on adjoining allotments is less than the outcomes prescribed in C1, new development is not to create any additional overshadowing for that development.

C3. Shadow diagrams for 9.00 am, 12.00 pm and 3.00 pm on the winter solstice (21 June) are to be submitted with a development application where a building of two storeys or more is proposed.

Note: Council may request that shadow diagrams be submitted for single storey buildings where solar access is deemed to be an area of concern.

F2.4.3. Views

Explanation

Many areas of the Blue Mountains enjoy bushland and escarpment views which contribute to the amenity of a property. New commercial or retail development, particularly where located adjoining or within close proximity to residential areas, should be sited and designed to minimise the impact on views, where practicable.

Notes: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of view sharing Council may refer to the Planning Principle established in *Tenacity Consulting v Warringah Council [2004] NSWLEC 140* to guide the decision making process.

Controls

C1. Locate and design development to allow for view sharing ensuring that existing views enjoyed by surrounding properties and from public open spaces are not unreasonably affected.

PART F3
INDUSTRIAL DEVELOPMENT

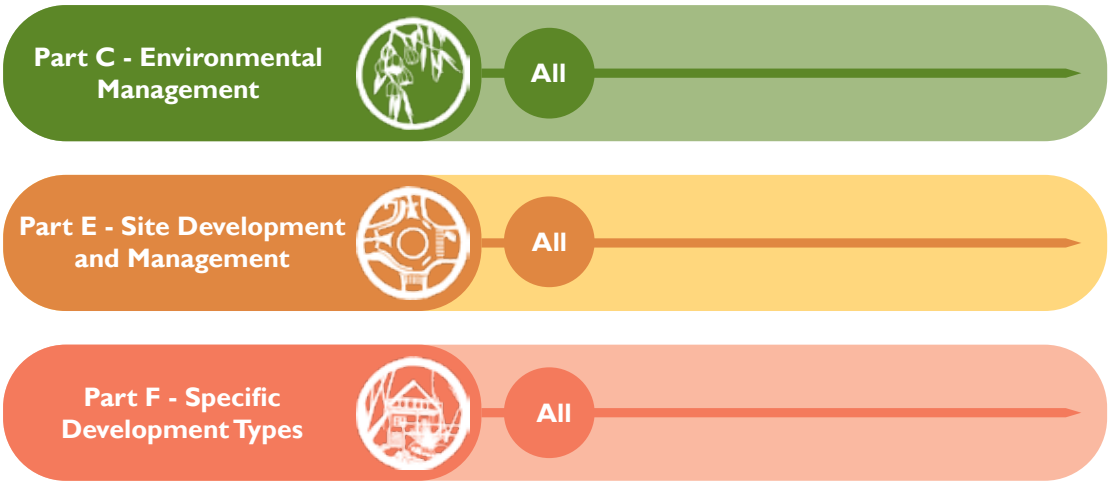


Introduction

Industrial zones permit a wide range of land uses including storage premises, some commercial and residential land uses, and general industrial development. In general, industrial land uses have a greater potential to result in adverse impacts than some other land uses and these need to be managed as part of site planning and design. Such development may also be adjoining or adjacent to residential zones. These types of developments need to be carefully planned and managed, to limit the potential for land use conflict in these areas.

To the extent of any inconsistency between this section and any other DCP sections, this section will prevail.

Read in conjunction with:



Relationship to other legislation and documents

- *State Environmental Planning Policy (Exempt and Complying Codes) 2008*

F3.1. Building Design and Site Planning

Explanation

Through high quality building design and appropriate site planning, industrial developments despite often having a larger bulk and scale, can provide and maintain a suitable level of visual, acoustic and environmental quality. Such design and site planning is required to maintain the amenity of adjoining neighbours and enhance the streetscape of the locality. This is particularly important where industrial development adjoins or is in close proximity to residential development.

Objectives

O1. To ensure that industrial development is designed and sited to minimise impacts on the environment and on the visual and acoustic privacy of adjoining and nearby development.

O2. To ensure that industrial development is compatible with the amenity of existing and likely future residential use within the adjoining residential zone.

Controls

C1. New industrial development is to minimise bulk and scale and utilise design elements such as articulation to limit visual intrusion.

Note: Refer to Part B2 Building Envelope of this DCP, with particular reference to B2.3.3.

C2. Where new industrial development adjoins a residential zone, new buildings are to be sited so as to retain the visual and acoustic privacy of residents of properties in these adjoining residential zones.

C3. Warehouses and industrial buildings are to be equipped with permanent ridge venting.

F3.2. Driveways and Parking

Explanation

The location and design of driveways are key considerations when planning for development. Driveways that are appropriately located serve to maintain the safety and functionality of the public road network and allow for the retention of on-street parking.

The location and design of parking facilities such as basement parking, garages and landings are an important determinant of streetscape appearance. Parking facilities that are poorly designed and inappropriately positioned can compromise the appearance of a streetscape.

Objectives

O1. To ensure that industrial development provides sufficient and convenient onsite parking without compromising streetscape appearance or traffic safety and function.

Controls

Driveways

C1. Only one driveway is to be provided at each road frontage of an allotment.

C2. Notwithstanding C1, Council may consider a second driveway where it can be demonstrated that:

(a) an allotment has a frontage of substantial width, and

(b) it is required for manoeuvrability within the site (due to the operation of the industrial use or the size of vehicle required to access the site) within the second driveway, and

(c) sufficient on-street parking is available in the locality, and

(d) traffic and pedestrian safety will not be compromised.

C3. The alignment of driveways shall be located at least 2m from any side boundary to provide space for landscaping and pervious area.

C4. Driveways are to be positioned so that on-street parking and landscaping on the site is maximised, and removal or damage to existing street trees is avoided.

C5. Driveway widths are to comply with Australian Standard 2890.2 Parking facilities – Off-street commercial parking facilities and be a minimum of 3m wide and no wider than the opening associated with the parking facility other than as necessary to enable vehicles to access car parking spaces.

C6. Driveways associated with industrial development shall be designed to:

(a) enable vehicles to enter and leave the site in a forward direction, and

(b) be capable of accommodating the entry and exit manoeuvres of the largest vehicle expected to enter the site.

Parking

C7. On-site parking is to be provided in accordance with the parking rates table provided at Part E2 Traffic, Parking and Access of this DCP: *Part E2: Table 1.*

C8. Car parking areas should preferably be located behind the front alignment of buildings and are not to form a visually prominent element of the streetscape.

C9. Where car parking cannot be located behind the front building alignment, parking areas are to be designed to provide appropriate space for landscaping (that is, along property boundaries and at regular intervals between parking spaces) without prejudicing the aim, objectives and relevant provisions of *Planning for Bushfire Protection*, NSW Rural Fire Service.

Basement parking

C10. Basement car parking shall:

(a) be located within the limits of the building footprint and project no more than 1m above existing ground level, and

(b) facilitate natural ventilation, and

(c) incorporate lighting in accordance with the Australian Standard 1680.2.1 Interior and workplace lighting – Specific applications – Circulation spaces and other general areas.

C11. Separate pedestrian access to buildings is to be provided.

F3.3. Landscaping for parking areas

Explanation

Industrial development has the potential to result in larger scale development comprising sizable hard stand areas for parking and site manoeuvrability. With consideration for these design elements, there are often more limited landscaping opportunities. However, because of the bulk and scale of industrial development, landscaping has an important role to play in both the provision of spaces on the site to absorb run off, and also to visually soften development and contribute to streetscape amenity.

Note: The landscaping controls prescribed below supplement the objectives and controls prescribed in Part C3 Landscaping.

Note: In the case of development of land zoned E3 or E4 that is also classified as bush fire prone land, the provision of landscaping is not to prejudice the aim, objectives and relevant provisions of *Planning for Bushfire Protection*, NSW Rural Fire Service.

Objectives

O1. To ensure that industrial development is appropriately planned and sited to accommodate landscaped areas within car parks and associated hard stand areas of the site.

Controls

C1. Landscaping is to be used to minimise the physical and visual dominance of car parking and vehicular circulation areas.

C2. Where it is not possible or practical to retain existing trees, new advanced trees are to be provided within the landscaped areas to rapidly reinstate a canopy presence of equivalent stature.

C3. The soil volume provided within planter beds is to be sufficient to ensure successful establishment and growth of selected tree and shrub species. As a guide the following soil volumes (unobstructed root area) are required for tree establishment:

(a) Between 5 and 15 cubic metres for a small tree (6-8m height with a 5m crown spread); and

(b) Between 20 and 40 cubic metres for a medium sized tree (10-12m height with a 8m crown spread); and

(c) Between 50 and 80 cubic metres for a large tree (16-20m height with a 16m crown spread).

C4. Planter beds are to use Gap Graded or "structural" soils in the subsoil layer to assist in the provision of a sustainable growing medium for selected species. Structural subsoil is to also be provided beneath parking bays adjacent to planted trees so as to increase available soil volume.

C5. In order to reduce the potential for damage to tree trunks and to reduce subsequent pruning maintenance, trees are to be located to the centre of planting beds.

C6. Plant materials selected are to be compatible with pedestrian access, safety and amenity. Trees which produce high levels of leaf, flower or fruit debris or large quantities of resin are to be avoided.

C7. Plant spacing, layout and characteristics are to provide adequate opportunities for natural surveillance and the maintenance of required sight lines at egress and entrance points.

C8. Artificial lighting and associated infrastructure is to be located so as to avoid conflict with existing and proposed canopy elements. Ensure adequate space is provided to accommodate mature tree canopy without compromising illumination.

F3.4. Amenity and Privacy

Explanation

Development in industrial zones can take a number of forms. Some land uses permitted within these zones are commercial or recreational in nature, and others are light industrial uses of a limited scale. Some uses can result in excessive noise, unpleasant odours, the obstruction of natural light and/or the creation of intrusive unnatural light after dark. Any of these outcomes have the potential to diminish the amenity of neighbours.

In a number of areas of the Blue Mountains, industrial zones are located adjoining, or within close proximity of residential zones. The use of appropriate building materials, landscaping and adequate setbacks, can reduce conflict between these land uses and allow the amenity and privacy of residential neighbours to be maintained.

Objectives

O1. To ensure adverse impacts to the amenity of adjoining and nearby properties are minimised.

O2. To provide effective measures, both operational and constructed, to minimise the impacts of operational noise and odour.

O3. To design and locate industrial development to maintain reasonable solar access to adjacent properties, with particular consideration for adjoining residential zones.

Controls

C1. Development within Zones **E3 Productivity Support , E4 General Industrial** and on land which adjoins or is adjacent to land that permits residential accommodation is to be compatible with the amenity of any existing and likely future residential use, having regard to:

(a) the relative building scale, bulk, design and height and the siting of the proposed development, and

(b) the retention of acoustic and visual privacy of residents of properties in the residential zone, and

(c) the hours of operation of the proposed development, and

(d) levels of traffic generation of the proposed development, and

(e) any noise, light dust and odour impacts likely to be generated by the proposed development, and

(f) overshadowing of, and retention of solar access to, properties in the residential zone.

Site Planning

C2. Site landscaping is to include sufficient planting within side and rear setbacks so as to provide privacy and enhance visual amenity within the site and for adjacent dwellings.

C3. Operating plant, including air conditioning systems, generators or other equipment, is to be located:

(a) sufficiently distant from any adjoining residential development, and

(b) within an enclosed space to provide for noise attenuation and management of fumes, and

(c) to minimise the visual impact on the streetscape and adjoining development.

Depending on the scale and type of the development, impact assessments for Noise and Odour may need to be submitted as part of a development application.

Sunlight Access

C4. Locate and design development so that between the hours of 9am and 3pm on 21 June:

(a) at least 1m^2 of living room windows associated with neighbouring development receive a minimum of 3 hours of unobstructed sunlight, and

(b) at least 50% of private open space areas associated with development on adjoining allotments receive a minimum of 3 hours of unobstructed sunlight.

C5. Where pre-development sunlight access enjoyed by development on adjoining allotments is less than the outcomes prescribed in C4, new development is not to create any additional overshadowing for that development.

C6. Shadow diagrams for 10.00 am, 12.00 pm and 2.00 pm on the winter solstice (21 June) are to be submitted with a development application where a building of two storeys or more is proposed.

Note 1: Council may request that shadow diagrams be submitted for single storey buildings where solar access is deemed to be an area of concern.

Note 2: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of sunlight access Council may refer to the Planning Principle established in *The Benevolent Society v Waverley Council [2010] NSWLEC 1082* to guide the decision making process.

Hours of Operation

C7. Having regard for the hours of operation of the development, particular consideration is to be given to noise and light spill resulting from deliveries and loading outside of core operating hours.

Views

C8. Locate and design development to allow for view sharing ensuring that existing views enjoyed by surrounding properties and from public open spaces are not substantially affected.

Notes: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of view sharing Council may refer to the Planning Principle established in *Tenacity Consulting v Warringah Council [2004] NSWLEC 140* to guide the decision making process.

F3.5. Industrial Ancillary Development

F3.5.1. Industrial Retail Outlets

Explanation

Development within Zones **E3 Productivity Support** and **E4 General Industrial**, can include a retail component for the display or sale of those goods manufactured on the site, in conjunction with the associated industry. This enables manufacturers to sell products from their production site on a limited basis, without needing to take up another retail premise for this purpose.

Controls

C1. The retail floor area of any Industrial Retail Outlet is to be in accordance with the provisions of LEP 2015 clause 5.4(4) (Industrial retail outlets).

C2. Industrial retail outlets are to be accessed via a separate entrance, located away from the manufacturing area of the development. This entrance is to the clearly identified and easily accessible from any parking areas.

F3.5.2. Dwellings (Caretaker's residence)

Explanation

Industrial development may include the provision of an ancillary caretaker's residence. This is not a defined used in LEP 2015, and a dwelling of this type will be assessed under the general provisions of this DCP, and those for Low Density Residential development. However, there are some particular considerations in relation to this type of dwelling, due to their location within an industrial site.

Objectives

O1. To ensure that private open space functions as an accessible extension to the living area of a dwelling, is designed to protect privacy, optimise solar access and allows for passive recreation.

Controls

C1. Private open space is not to be situated in the front building setback.

C2. Development for the purposes of a dwelling ancillary to industrial development is to have at least 25m^2 of private open space, and this open space area is to:

(a) have a minimum width of 4m;

(b) be appropriately screened and appropriately separated from the industrial development on the site, and

(c) have reasonable access to a living area of the subject dwelling, and

(d) have a slope of less than 10%.

PART F4
TOURIST DEVELOPMENT



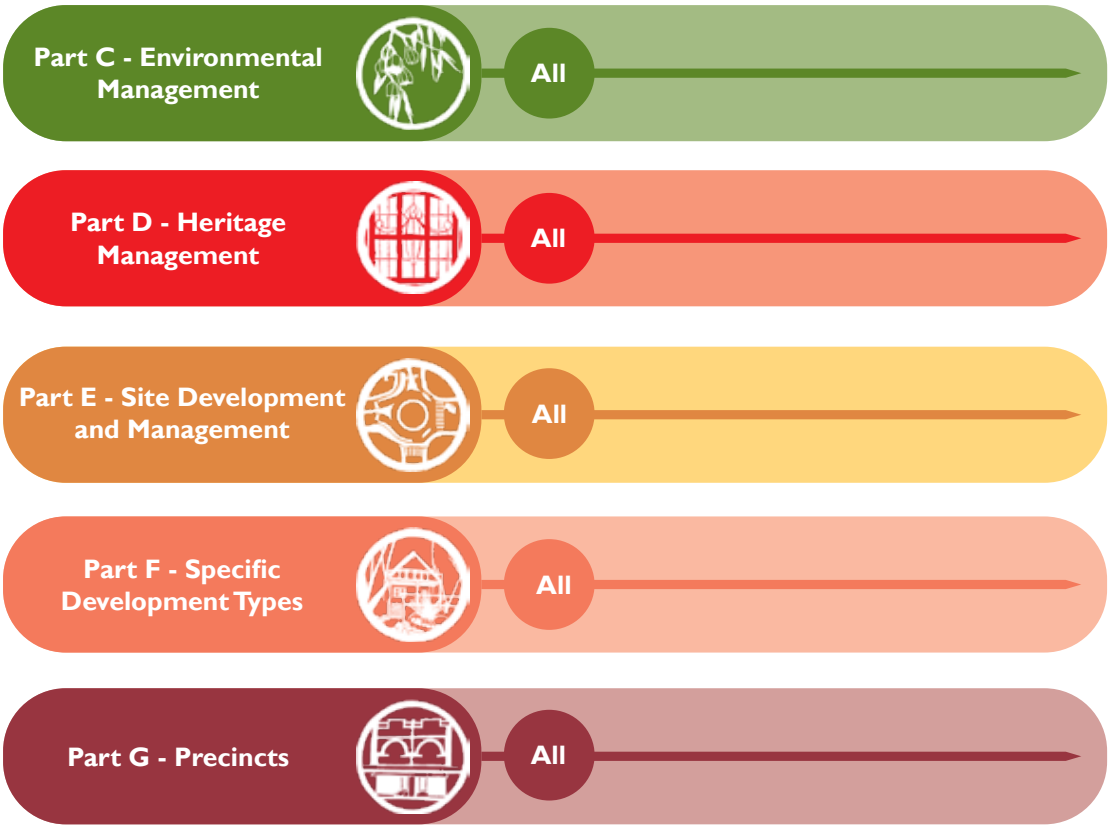
Introduction

Tourism is core business in the Blue Mountains, with the Local Government Area being one of the most highly visited tourist destinations in New South Wales. Tourism provides support for the local economy, as well educating and exposing visitors to the village and towns within the World Heritage National Park.

This environmentally sensitive location and the regular influx of people beyond the resident population, also presents challenges in relation to the management of services, traffic and parking, as well as the privacy and amenity of residents who adjoin properties used for tourist and visitor facilities.

This part of the DCP provides objectives and controls for visitor and tourist accommodation, to ensure that the City can provide inviting and well serviced places for people to stay, without adversely impacting on the amenity and well-being of permanent residents.

Read in conjunction with:



Relationship to other legislation and documents

- *State Environmental Planning Policy (Exempt and Complying Codes) 2008*

F4.1. General objectives for all Visitor and Tourist Accommodation

O1. To encourage environmentally sustainable tourist development that provide quality built outcomes, which respond to the unique qualities of neighbourhood character, for the economic and social benefit of the City.

O2. To ensure that tourist-based development results in a net benefit to the condition of the land upon which it is located.

O3. To ensure that the amenity and privacy of adjoining properties is preserved, including visual and acoustic privacy, and solar access.

O4. To provide an appropriate proportion of accessible accommodation suites for the elderly, people with a disability and people with limited mobility.

O5. To ensure that adequate onsite parking is provided for guests and staff, and that these parking areas do not detract from streetscape amenity and character of the locality.

O6. To ensure that the provision of services and plant does not result in visual clutter.

F4.2. Bed & Breakfast Accommodation, and Farm Stay Accommodation

Explanation

Bed and Breakfast Accommodation is common throughout the Blue Mountains, and provides for a relatively low scale, low impact form of tourist accommodation operated from a dwelling by the permanent residents of that dwelling. It is important that this type of development is appropriately designed to minimise impacts to adjoining neighbours and provide appropriate services for guests, such as onsite parking and accessible access.

Note: *Bed and Breakfast Accommodation* is considered complying development in certain circumstances, under the provisions of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*, and a complying development certificate is required rather than a development application.

Farm Stay Accommodation is short term accommodation for paying guests on a working farm as a secondary business to primary production.

Note: Farm Stay Accommodation is considered complying development in certain circumstances, under the provisions of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008, and a complying development certificate is required rather than a development application.

F4.2.1. Site Planning and Bush fire requirements

Explanation

The location and size of an allotment are important factors with regard to the siting of a development. This is more pertinent when the allotment is identified as bush fire prone land on the *Bush fire prone land Map*. The following controls should be referred to early in the design stage of the proposal.

Controls

C1. In accordance with LEP 2015 clause 5.4(1) (Bed and breakfast accommodation), bed and breakfast accommodation is limited to four (4) bedrooms.

C2. Bed and Breakfast accommodation can only be operated from a dwelling located on a site that has a total area of 1200m^2 or greater.

C3. Where *bed and breakfast accommodation* is proposed to be located on bush fire prone land as identified on the Bush Fire Prone Land Map, a *Bush fire Threat Assessment* is to be submitted as part of any application. The development is to comply with the requirements of the *Rural Fires Act 1997* and *Planning for Bush fire Protection*. Refer to Part E4 of this DCP.

Note 1: *Bed and breakfast accommodation* is considered a Special Fire Protection Purposes under the provisions of the Rural Fires Act 1997. Development applications for these land uses will therefore be referred to the Rural Fire Service for the issue of a Bush Fire Safety Authority.

Note 2: *Bed and breakfast accommodation* may be exempt from the requirement for a Bush fire Safety Authority if it is proposed to be located more than 30m from native vegetation. Refer to clause 45 of the Rural Fires Regulation 2022.

F4.2.2. Parking and Access

Explanation

While *bed and breakfast accommodation* is a low scale form of tourist accommodation, it does result in some traffic generation which can affect adjoining and neighbouring residents. To ensure that the development does not result in overflow parking to the street, but does provide appropriately located, accessible parking for guests the following controls detail how parking is to be provided within the property.

Controls

Driveways

C1. Only one driveway is to be provided at each road frontage of an allotment.

C2. Notwithstanding C1, Council may consider a second driveway where it can be demonstrated that:

(a) an allotment has a frontage of substantial width, and

(b) it is required for efficient manoeuvrability within the site, and

(c) sufficient on-street parking is available in the locality, and

(d) traffic and pedestrian safety will not be compromised.

Parking

C3. On-site parking is to be provided in accordance with the parking rates table provided at Part E2 Traffic, Parking and Access of this DCP, Part E2: Table 1.

C4. Car parking areas should preferably be located behind the front alignment of buildings and are not to form a visually prominent element of the streetscape.

C5. Car parking spaces and vehicle turning areas are generally not permitted within the front setback area. Consideration will be given to varying the location where it is desirable for environmental reasons, or where there is a substantial setback and dense landscape screening.

C6. For new construction for the purposes of *bed and breakfast accommodation* and *farm stay accommodation*, all parking is to be provided onsite, and guest parking is to be clearly identifiable and easily accessed.

F4.2.3. Amenity

Explanation

The location of *Bed and breakfast accommodation* within residential areas has the potential to result in adverse impacts on adjoining properties and nearby neighbours, particularly in relation to privacy and noise. With well-considered design of both the site and the dwelling, these potential impacts can be minimised.

Controls

Acoustic Amenity and Privacy

C1. Noise emissions not be audible inside any adjoining dwelling between 10:00pm and 7:00am on weekdays and between 10:00pm and 8:00am on Saturdays, Sundays and public holidays. At all other times, noise levels must not exceed 5Dba above ambient background noise level measured at the lot boundary.

C2. For new construction, any balcony, deck or outdoor entertaining / recreation area (such as BBQ areas, swimming pools or spas) is to be located and designed in a manner that does not adversely impact on the privacy or amenity of adjoining neighbours, and located away from the bedroom areas of adjoining dwellings.

C3. Where the development is a change of use from a dwelling to *bed and breakfast accommodation,* privacy screening and any other measures to limit privacy and amenity impacts are to be included for existing balcony, deck or outdoor entertaining / recreation areas.

C4. Operating plant, including air conditioning systems, generators, pool pumps or other equipment, is to be located:

(a) sufficiently distant from any adjoining residential development, and

(b) where appropriate, within an enclosed space to provide for noise attenuation.

F4.2.4. Sunlight Access

Controls

C1. For new construction for the purposes of *bed and breakfast accommodation* and *farm stay accommodation*, the development is to be designed and located so that between the hours of 9am and 3pm on 21 June:

(a) at least 1m^2 of living room windows associated with neighbouring development receive a minimum of 3 hours of unobstructed sunlight, and

(b) at least 50% of private open space areas associated with development on adjoining allotments receive a minimum of 3 hours of unobstructed sunlight.

C2. Where pre-development sunlight access enjoyed by development on adjoining allotments is less than the outcomes prescribed in C1, new development is not to create any additional overshadowing for that development.

F4.2.5. Services

Controls

C1. For new dwellings to be used for *bed and breakfast accommodation*, the provision of electricity and gas services is to be provided underground.

C2. Provision is to be made for only one external television aerial to service the *bed and breakfast accommodation*.

C3. For all dwellings to be used for *bed and breakfast,* the following dedicated areas are to be provided on site:

(a) A common clothes drying area, and

(b) An area for storing garbage, recycling and composting bins, which is suitably located and screened.

F4.3. Hotel or Motel Accommodation, Serviced Apartments and Backpackers' Accommodation

Explanation

By definition, *hotel or motel accommodation, serviced apartments* and *backpackers' accommodation* are relatively high density land use compared with other forms of tourist accommodation in the Blue Mountains, and includes not only accommodation and parking facilities for visitors, but also commonly incorporates separate land uses such as a restaurant facility for both guests and the general public for example. It is therefore important this type of development is planned and managed to limit potential impacts on adjoining neighbours and the surrounding area.

F4.3.1. Site Planning and Building Design

Explanation

Through high quality building design and appropriate site planning, development for *hotel or motel accommodation* and *serviced apartments* can make a positive contribution to the locality and provide for functional and inviting access for the general public. This development type is primarily located within town centres and immediately surrounding areas. These areas are in the main, identified as precinct areas on the LEP 2015 Built Character Map, and are to meet the particular objectives and controls identified in Part G Locality Management, of this DCP. The following controls are supplementary to Part G, and where there is any inconsistency in the provisions, Part G prevails.

Controls

Design

C1. New development for the purposes of *hotel or motel accommodation, serviced apartments* or *backpackers' accommodation*, including additions and alterations, in precinct areas as identified on the LEP 2015 Built Character Map, is to be undertaken in accordance with the relevant provisions in Part B3 Design of this DCP.

C2. New hotel or motel accommodation, serviced apartments and backpacker's accommodation, including additions and alterations, is to minimise bulk and scale and utilise design elements such as articulation to limit visual intrusion.

F4.3.2. Building articulation and separation

Explanation

The spatial separation of buildings and articulation of built form is an important determinant of massing and streetscape appearance. Adequate building separation and thoughtful articulation 'softens' the visual mass of *hotel or motel accommodation, serviced apartments* or *backpackers' accommodation*, improves amenity and allows for landscaping opportunities.

Controls

C1. Building separation between detached dwellings within a hotel or motel accommodation development is to comply with minimum distances prescribed in *Part F4 - Table 1*.

Part F4 - Table 1: Separation distances based on number of storeys

Number of storeys	Room type	Minimum separation distance
Up to 2 storeys	All room types	6m
Greater than 3 storeys	Between non-habitable rooms	6m
	Between habitable rooms or balconies and non-habitable rooms	9m
	Between habitable rooms or balconies	12m

C2. Notwithstanding C1, consideration will be given to an alternative separation distance where it can be demonstrated that:

(a) the scale and massing of the development is visually appropriate and consistent with streetscape appearance, and

(b) adequate visual privacy, acoustic privacy and solar access can be achieved for each of the dwellings, and

(c) the area between the dwellings provides for the retention of existing vegetation and/or ample space for landscaping.

C3. Reduce the visual bulk of roof forms by breaking down the roof into smaller elements, rather than having a single uninterrupted roof structure.

C4. Reduce the visual impact of unrelieved walls by limiting length of walls and / or articulating built form, particularly on narrow side and rear setbacks.

F4.3.3. Site Requirements and Services

Controls

C1. Development for hotel or motel accommodation, with the exception of low scale tourism development subject to clause 6.28 (Rural and nature-based tourist facilities) of LEP 2015, is not to be located on land without a reticulated sewerage system in place that has the existing capacity to service the development, or can be upgraded to accommodate the additional capacity as part of the development.

C2. For new construction, the provision of electricity and gas services is to be provided underground, where reticulated services are available.

F4.3.4. Parking and Access

Explanation

Development for *hotel or motel accommodation, serviced apartments* or *backpackers' accommodation* has the potential, particularly larger scale proposals, to generate a substantial parking need. Onsite parking is important to ensure that development does not impact on adjoining neighbours and the local street network. It is important that these parking areas are appropriately designed and located to allow for safe and efficient vehicle movement to and from the site, as well as minimise the impact of these hard stand areas on local amenity of the streetscape.

Objectives

O1. To ensure that development for the purposes of hotel or motel accommodation provides onsite parking that is adequate for the land use, without compromising streetscape appearance or traffic safety and function.

Controls

Driveways

C1. Only one driveway is to be provided at each road frontage of an allotment.

C2. Notwithstanding C1, Council may consider a second driveway where it can be demonstrated that:

(a) an allotment has a frontage of substantial width, and

(b) it is required for manoeuvrability within the site (due to the operation of the commercial use or the size of vehicle required to access the site), and

(c) sufficient on-street parking is available in the locality, and

(d) traffic and pedestrian safety will not be compromised.

C3. The alignment of driveways shall be located at least 2m from any side boundary to provide space for landscaping and pervious area.

C4. Driveways are to be positioned so that on-street parking and landscaping on the site is maximised, and removal or damage to existing street trees is avoided.

C5. Driveway widths are to comply with Australian Standard 2890.2 Parking facilities – Off-street commercial parking facilities and be a minimum of 3m wide and no wider than the opening associated with the parking facility other than as necessary to enable vehicles to access car parking spaces.

C6. Driveways associated with large scale hotel or motel accommodation shall be designed to:

(a) enable vehicles to enter and leave the site in a forward direction, and

(b) be capable of accommodating the entry and exit manoeuvres of the largest vehicle expected to enter the site.

Parking

C7. On-site parking is to be provided in accordance with the parking rates table provided at Part E2 Traffic, Parking and Access of this DCP, *Part E2: Table 1.*

C8. Car parking areas are to be located behind the front alignment of buildings and are not to form a visually prominent element of the streetscape.

C9. Where parking cannot be located behind the front building alignment, parking areas are to be designed to provide appropriate space for landscaping; both on the boundaries and along street frontages, as well as at regular intervals between parking spaces.

Basement parking

C10. Basement car parking shall:

(a) be located within the limits of the building footprint and project no more than 1m above existing ground level, and

(b) facilitate natural ventilation, and

(c) incorporate lighting in accordance with the Australian Standard 1680.2.1 Interior and workplace lighting – Specific applications – Circulation spaces and other general areas.

C11. Separate pedestrian access to buildings is to be provided.

F4.3.5. Landscaping

Explanation

Development for the purposes of *hotel or motel accommodation, serviced apartments* or *backpackers' accommodation* generally results in higher urban densities and there are subsequently fewer opportunities to achieve good landscaping outcomes. For this reason, it is important that existing vegetation and desired landscape outcomes are considered in more detail at the development design stage. This includes consideration of landscaping within the main part of the site, and specifically within parking areas for the proposed development.

Note: The landscaping controls prescribed below supplement the objectives and controls prescribed in Part C3 Landscaping.

Objectives

O1. To ensure hotel or motel accommodation is appropriately planned and designed to:

(a) provide for adequate and appropriate areas that are set aside for landscape purposes, and

(b) accommodate landscaped areas within car parks and associated hard stand areas.

Controls

C1. The landscape objective and controls contained within this part of the DCP do not apply to hotel or motel accommodation proposed on land in zone E3.

C2. To facilitate absorption of run-off and provide for adequate landscaping opportunities, a deep soil zone comprising at least 10% of the site area is to be provided as a single area at the rear of the site. Where the pattern of neighbourhood development has deep soil planting at the front of the site, it may be desirable to replicate this pattern.

Landscaping for Car park Areas

C3. Landscaping is to be used to minimise the physical and visual dominance of car parking and vehicular circulation areas.

C4. Where it is not possible or practical to retain existing trees, new advanced trees are to be provided within the landscaped areas to rapidly reinstate a canopy presence of equivalent stature.

C5. The soil volume provided within planter beds is to be sufficient to ensure successful establishment and growth of selected tree and shrub species. As a guide the following soil volumes (unobstructed root area) are required for tree establishment:

(a) Between 5 and 15m^3 for a small tree (6-8m height with a 5m crown spread), and

(b) Between 20 and 40m^3 for a medium sized tree (10-12m height with a 8m crown spread), and

(c) Between 50 and 80m^3 for a large tree (16-20m height with a 16m crown spread).

C6. Planter beds are to use Gap Graded or "structural" soils in the subsoil layer to assist in the provision of a sustainable growing medium for selected species. Structural subsoil is to also be provided beneath parking bays adjacent to planted trees so as to increase available soil volume.

C7. In order to reduce the potential for damage to tree trunks and to reduce subsequent pruning maintenance, trees are to be located to the centre of planting beds.

C8. Plant materials selected are to be compatible with pedestrian access, safety and amenity. Trees which produce high levels of leaf, flower or fruit debris or large quantities of resin are to be avoided.

C9. Plant spacing, layout and characteristics are to provide adequate opportunities for natural surveillance and the maintenance of required sight lines at egress and entrance points.

C10. Artificial lighting and associated infrastructure is to be located so as to avoid conflict with existing and proposed canopy elements. Ensure adequate space is provided to accommodate mature tree canopy without compromising illumination.

F4.3.6. Visual privacy

Explanation

Complete visual privacy is often difficult to achieve in the urban context and is not necessarily desirable. Some level of cross viewing between properties is beneficial as this serves to improve security through passive surveillance.

Note: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of privacy Council may refer to the Planning Principle established in *Meriton v Sydney City Council [2004] NSWLEC 313* to guide the decision making process.

Controls

C1. Proposed habitable room windows with a direct outlook to habitable room windows or private open space of an adjacent dwelling are to have a separation distance of no less than 6m.

C2. Where proposed habitable room windows will have a direct outlook to habitable room windows or private open space of an adjacent dwelling and are separated by less than 9m, the window shall:

(a) be offset a minimum of 1m from the edge of the proposed window to the edge of the existing window, or

(b) have sill heights of at least 1.6m above floor level, or

(c) have fixed obscure glazing applied to any part of the window below 1.6m above floor level.

C3. Overlooking to private open space areas on adjoining properties is to be reduced by ensuring that any upper level balconies are designed and screened to minimise the potential for overlooking of the private open space of any lower level of adjoining dwellings.

C4. Where potential overlooking cannot be avoided, views of private open space areas may be obscured in the following ways:

(a) by solid translucent screens or perforated panels or trellises, which have a maximum of 25% openings and that are designed to blend in with the proposed redevelopment, and are to be permanent components of the structure and difficult to alter,

(b) by retention or planting of dense mature vegetation on the development site, if used in conjunction with (a).

C5. The setback between shared driveways or access ways (including a right of carriageway) and the habitable room windows of a dwelling is to be no less than 1.5m.

F4.3.7. Acoustic privacy

Explanation

Clever layout and design can serve to improve acoustic amenity, particularly in regard to the positioning of noise generating rooms such as living areas, and designing to minimise impacts from external noise sources such as rail corridors and busy roads.

Controls

C1. Outdoor facilities including swimming pools, tennis courts and BBQ areas are to be located away from noise sensitive rooms of adjoining dwellings.

C2. Operating plant, including air conditioning systems, generators or other equipment, is to be located:

(a) sufficiently distant from any adjoining residential development, and

(b) within an enclosed space to provide for noise attenuation and management of fumes, and

(c) to minimise the visual impact on the streetscape and adjoining development.

Depending on the scale and type of the development, impact assessments for Noise and Odour may need to be submitted as part of a development application.

C3. Residential development adjacent to a rail corridor or a classified road is to be located and designed to ameliorate potential noise impacts arising from the adjacent rail corridor or classified road. Refer to requirements in *State Environmental Planning Policy (Transport and Infrastructure) 2021* and the *NSW Department of Planning document Development near Rail Corridors and Busy Roads – Interim Guideline.*

F4.3.8. Sunlight access

Explanation

Adequate solar access contributes to the health and amenity of hotel or motel accommodation, serviced apartments or backpackers' accommodation and its inhabitants. Good solar access also reduces reliance on artificial lighting and heating which has subsequent financial and environmental benefits.

Note: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of sunlight access Council may refer to the Planning Principle established in *The Benevolent Society v Waverley Council [2010] NSWLEC 1082* to guide the decision making process.

Objectives

O1. To ensure that hotel or motel accommodation, serviced apartments or backpackers' accommodation is located and designed to optimise solar access to living rooms and private opens space areas, and to maintain reasonable solar access to adjacent properties.

Controls

C1. Locate and design development so that between the hours of 9am and 3pm on 21 June:

(a) at least 1m^2 of living room windows associated with neighbouring development receive a minimum of 3 hours of unobstructed sunlight, and

(b) at least 50% of private open space areas associated with development on adjoining allotments receive a minimum of 3 hours of unobstructed sunlight.

C2. Where pre-development sunlight access enjoyed by development on adjoining allotments is less than the outcomes prescribed in C1, new development is not to create any additional overshadowing for that development.

C3. Limit number of single-aspect dwellings with a southerly aspect (SW-SE) to a maximum of 10% of the total dwellings proposed in development for hotel or motel accommodation.

C4. Shadow diagrams for 9:00 am, 12:00 pm and 3:00 pm on the winter solstice (21 June) are to be submitted with a development application where a building of two storeys or more is proposed.

Note: Council may request that shadow diagrams be submitted for single storey buildings where solar access is deemed to be an area of concern.

F4.3.9. Views

Explanation

Many dwellings and public places in the Blue Mountains enjoy bushland and escarpment views which contribute to the amenity of the property. New development should be sited and designed to minimise the impact on views, where practicable.

Note: Council's assessment of development applications is guided by Land and Environment Court Planning Principles. In the case of view sharing Council may refer to the Planning Principle established in *Tenacity Consulting v Warringah Council [2004] NSWLEC 140* to guide the decision making process.

Controls

C1. Locate and design development to allow for view sharing ensuring that existing views enjoyed by surrounding properties and from public open spaces are not unreasonably affected.

F4.4. Eco-tourist Facility

Explanation

An eco-tourist facility is a low scale form of tourist accommodation, intended to provide guests with a direct experience of special ecological or cultural features, while being sensitively located within the environment. To ensure this type of development respects the environmental values of the land, factors including the scale of the development, the management of waste, and impacts on visual and landscape values must be appropriately considered.

Objectives

Eco-tourist facilities are to comply with the general objectives at Part F4.1 related to all Tourist and Visitor Accommodation, as well as those listed below:

O1. To comply with the provisions of clause 5.13 (Eco-tourist facilities) of LEP 2015

O2. To facilitate and support the establishment of low scale nature based tourism in accordance with clause 6.28 (Rural and nature-based tourism facilities) of LEP 2015.

O3. To ensure the size and scale of eco-tourist facilities is consistent with the aim of protecting and enhancing the natural environment or scenic amenity of the locality.

O4. To ensure that eco-tourist facilities are sympathetically designed and sited such that development does not impinge on the amenity of adjoining properties.

F4.4.1. Design and Operation

Controls

C1. The development is to be designed to utilise building materials that blend with the surrounding landscape. The use of recycled materials and materials sourced from the region is also encouraged.

C2. A plan for the environmental repair and enhancement of the property (vegetation management plan or biodiversity conservation management plan) is to be submitted with any development application for an eco-tourist facility.

Note: In line with clause. 5.13 (Eco-tourist facilities) of LEP 2015, an approval for an eco-tourist facility will generally be conditioned to require that the operation of the facility is undertaken in accordance with a management strategy which will, among other things, prescribe ongoing evaluation practices, procedures and processes.

F4.4.2. Services

Controls

C1. A water management plan is to be submitted with any development application for an eco-tourist facility. The plan is to demonstrate how rain water is to be stored and reused within the facility.

C2. A waste management plan is to be submitted with any development application for an eco-tourist facility. The plan is to set out at a minimum, measures to separate and dispose of green waste, paper products, and other recyclable materials.

PART F5
SUBDIVISION AND CONSOLIDATION



Introduction

In the Blue Mountains, subdivision of land often has to take into account constraints including bushfire, environmental issues, water quality, slope, heritage and infrastructure capacity. Accordingly, the nature of subdivision in the Mountains is very different to the large release areas or green field subdivisions in western Sydney.

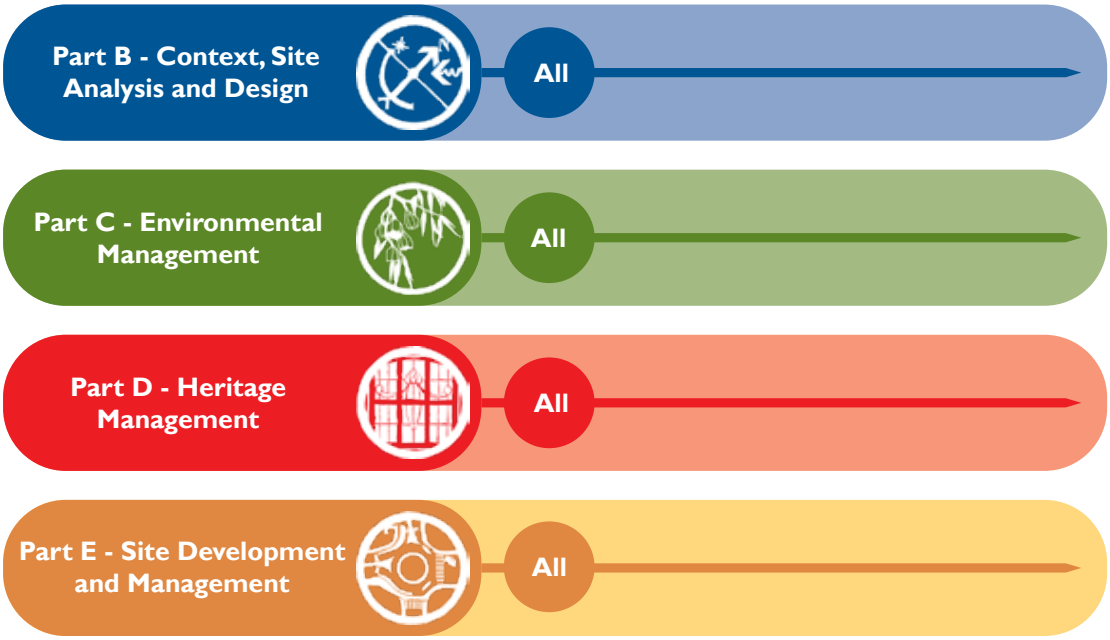
As there is little remaining land stock available for Torrens title subdivisions, it is anticipated that future higher density development in closer proximity to town centres will result in an increase in strata and community title subdivisions.

Consolidation of allotments does not require consent. It will generally be included as a condition of consent where a development extends over two or more allotments, to avoid any potential separate sale of an essential component of the development.

The minimum area requirements for new allotments and the circumstances where developments may be strata subdivided are prescribed in LEP 2015.

To the extent of any inconsistency between this section and any other DCP sections, this section will prevail.

Read in conjunction with:



Submission requirements:

One or more of the following types of reports may need to accompany a development application:

- *A bushfire threat assessment where the proposal is on bush fire prone land; and*
- *Concept stormwater, road and access plans*

F5.1. Subdivision

Objectives

O1. To create lots that can be developed, serviced, accessed and protected from bushfire while minimising adverse environmental, character, privacy and amenity impacts.

O2. To ensure that the subdivision complements the predominant subdivision pattern of the area.

O3. To ensure that lot sizes and street frontages can support the future development type and function.

O4. To create a subdivision layout that addresses any access and traffic constraints and maximises vehicle and pedestrian safety.

Controls

C1. Subdivision is to be designed to:

(a) ensure that the subdivision works, any necessary bush fire protection measures and future development of the lots have minimal environmental impact; and

(b) have a lot and road layout that takes the site topography and slope into account to minimise the need for cut and fill associated with road, access and future building construction; and

(c) protect natural overland flow paths; and

(d) ensure proposed building envelopes are not located on flood prone land; and

(e) protect natural, cultural and heritage features; and

(f) ensure that a heritage item and its curtilage are wholly contained within a single allotment; and

(g) have regard to the views to and from the site, and

(h) retain trees and vegetation communities through:

i. survey identification of all affected trees; and

ii. appropriate lot and road configuration; and

iii. not locating the proposed boundaries through and adjacent to trees and vegetation; and

iv. the provision of suitable building envelopes outside the significant vegetation that can be protected from bushfire without the need to hazard reduce the significant vegetation; and

v. the alignment of access points and location of services a sufficient distance from significant vegetation; and

vi. maximise retention of native vegetation communities and bushland elements (tree, shrubs and groundcovers) within and beyond Asset Protection zones to provide bushland character, biodiversity conservation and wildlife corridor values.

C2. Subdivisions on bushfire prone land are to comply with the requirements of the NSW Rural Fire Service document *Planning for Bush Fire Protection*, and ensure that any necessary bush fire asset protection zones are wholly contained within the site.

C3. The construction zone and construction methods used to establish subdivision works are to minimise site disturbance and environmental impacts.

C4. New allotments are to be regular in shape, with an orientation and alignment that enables:

(a) future buildings to have adequate street frontage and optimise solar access; and

(b) adequate private open space to be located behind future dwellings; and

(c) parking and stormwater measures for future development to be accommodated wholly within the allotment.

C5. The building envelope within all proposed lots is to be capable of being accessed via a driveway that is not located over environmentally sensitive land, and that is connected to a public road.

C6. Applications are to demonstrate that new allotments within Zones **R2 Low Density Residential, Zone C3 Environmental Management** and **Zone C4 Environmental Living** are to be able to accommodate a minimum 300m^2 building envelope that:

(a) is 15m by 20m or 12m by 25m, and

(b) does not include any Environmentally Sensitive Land, and

(c) does not contain land steeper than 10% slope, and

(d) is wholly outside the 1% Annual Exceedance Probability (AEP) flood, and

(e) is not within the boundary setbacks prescribed by LEP 2015 or the DCP; and

(f) can be readily and safely accessed by a vehicle from a public road.

C7. Applications are to demonstrate that new allotments within **Zone R2 Low Density Residential, Zone C3 Environmental Management** and **Zone C4 Environmental Living** are able to accommodate a minimum 150m^2 area for private open space that:

(a) is at least 10m wide or deep, and

(b) is not Environmentally Sensitive Land, and

(c) does not contain land steeper than 10% slope, and

(d) is located behind the building envelope specified in control C5, and

(e) can be readily accessed on foot from the building envelope.

C8. New allotments are to comply with the minimum lot widths prescribed in *Part F5 - Table 1*. Lot widths are measured at the relevant building setback as specified in the DCP or LEP.

Part F5 - Table 1: Minimum lot widths for new allotments.

Zone	Minimum lot width
R1 General Residential	18.5m
R2 Low Density Residential	18.5m
R3 Medium Density Residential	18.5m
E4 General Industrial	18.5m
C3 Environmental Management	30m
C4 Environmental Living	22m

C9. In other zones, the allotment widths are to be such that the lot is fit for purpose.

C10. The ratio between lot width to depth is to be between 1:1 and 1:4 within Zone R1 General Residential, Zone R2 Low Density Residential, Zone R3 Medium Density Residential, and Zone C4 Environmental Living.

C11. Subdivision of large sites for residential development should allow for a range of lot sizes to suit a mix of housing types and sizes.

C12. All lots are to be capable of legally and practically draining stormwater to a public road, a public drainage system or a natural watercourse. Where lots slope away from a public road and do not contain a public drainage system or a watercourse, piped interallotment drainage easements are to be provided over the downhill allotments to facilitate appropriate drainage to a public road, a public drainage system or a natural watercourse.

C13. Private interallotment drainage easements must be a minimum of 1m in width to enable ongoing maintenance access.

C14. All road, access and drainage design and easements are to:

(a) be in accordance with the Council's Design and Construction Specification; and

(b) comply with the Council's Public Domain Technical Manual Specification within town centres; and

(c) comply with the NSW Rural Fire Service document Planning for Bush Fire Protection in bush fire prone areas.

C15. All services are to be installed underground where new roads are created or existing roads are extended as part of the subdivision.

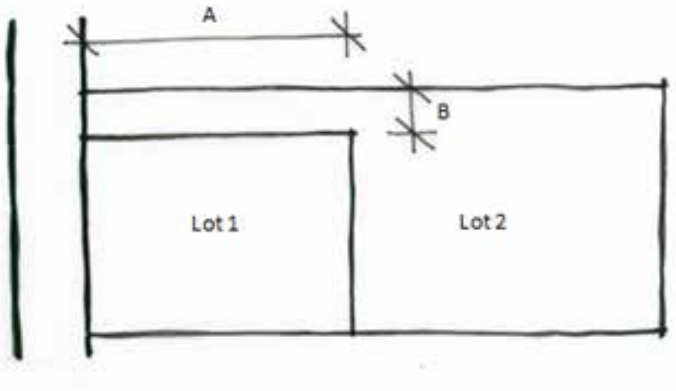
Battleaxe allotments

C16. For the purpose of Controls C15 to C19, a 'battleaxe allotment' is a lot proposed in a subdivision that relies on an access handle or a right of carriageway for the provision of access to a public road.

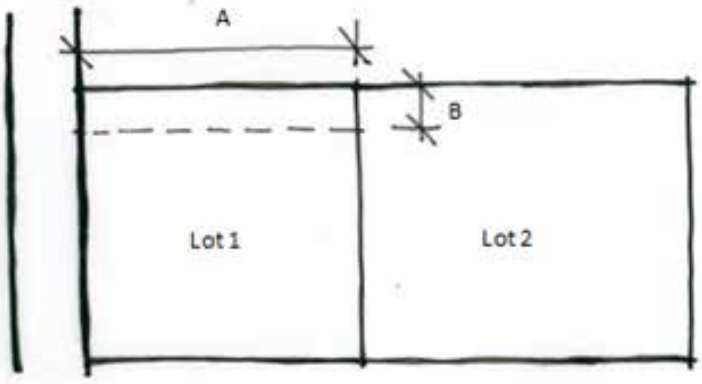
C17. The area of the battleaxe handle is excluded from the minimum lot area calculation for a battleaxe allotment as per *Part F5 - Figure 1*.

C18. Where a battleaxe allotment is accessed via a right of carriageway, the area and width of the right of carriageway is excluded from the minimum area and width calculations on the burdened lot as per *Part F5 - Figure 2*.

C19. Notwithstanding C17, the area and width of the right of carriageway is included in the minimum area and width calculations on the burdened lot only if that right-of-carriageway will provide the sole vehicular access for a dwelling on the burdened lot.



Part F5 - Figure 1: Calculating the minimum area of a battleaxe allotment (Lot 2); the battleaxe handle area (A x B) is to be excluded from Lot 2.



Part F5 - Figure 2: Calculating the minimum area and width of a lot burdened by a right of carriageway to a battleaxe allotment; the right of carriageway area (A x B) and width (B) is to be excluded from Lot 1 where vehicle access to Lot 1 is located outside the right of carriageway.

C20. A handle to a battleaxe allotment is to:

(a) have a passing bay approximately at mid length where the handle is longer than 50m, and

(b) serve a maximum of 3 allotments, and

(c) be a minimum of 4.5m wide where accessing a single allotment, and

(d) be a minimum of 6m wide where serving more than 1 allotment.

Strata subdivisions

C21. The strata titling of commercial and industrial development and affordable housing is discouraged as it may restrict the future redevelopment potential of the site by having multiple different owners.

C22. Within a strata or community title subdivision, parking spaces and spaces used for other purposes (e.g.: storage) that are associated with an individual unit are to be included in the same allotment as the unit.

C23. Landscaping, communal open space, access areas, services areas and directory board signage, where not part of an individual unit in a strata subdivision, are to be designated as common property.

F5.2. Consolidation

Objectives

O1. To minimise the potential of integral parts of a development being sold separately.

O2. To promote the efficient use of land and to avoid the creation of sites that are isolated from established urban settlements.

Controls

C1. Where development extends over 2 or more allotments, the allotments are to be consolidated prior to the issue of any Occupation Certificate.

C2. Consolidation of allotments for multi-unit development is encouraged so as to avoid isolated single dwellings on small lots surrounded by high density development.

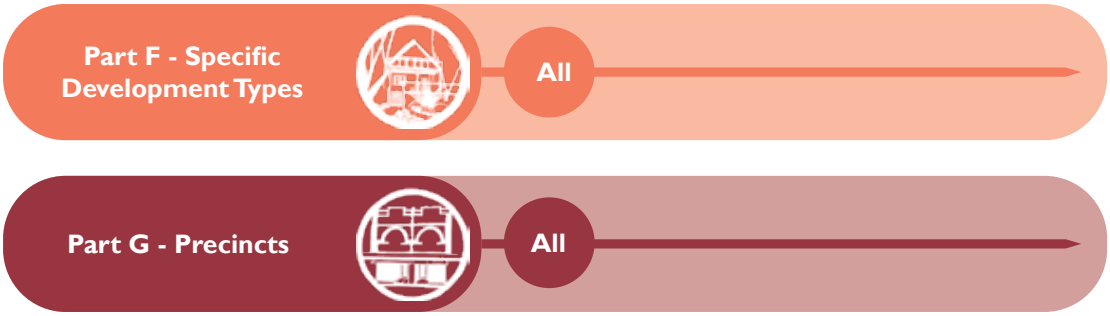
PART F6
SIGNAGE



Introduction

Rational, well located and appropriately designed signage serves to effectively identify and promote buildings and businesses in the Blue Mountains and can positively contribute to streetscape character. Conversely, signs that are inappropriately located, poorly designed and excessive in number create visual and physical clutter and can significantly detract from streetscape character. The objectives and controls contained in this part of the DCP apply to proposals for, or incorporating, signage.

Read in conjunction with:



Relationship to other legislation and documents:

- *State Environmental Planning Policy (Exempt and Complying Codes) 2008*
- *State Environmental Planning Policy (Industry and Employment) 2021*

F6.1. General requirements

F6.1.1. General objectives

O1. To provide a consistent approach to the control, location and design of signage.

O2. To encourage signage that is compatible with the desired amenity and visual character of an area.

O3. To ensure that signage is of a high quality design and finish.

O4. To ensure signage is adequate and effective and recognises the need for signs to provide direction, business identification and promotion.

O5. To prevent the proliferation of signage and to encourage the rationalisation of existing and proposed signs.

O6. To ensure signs are not located where they may be hazardous and/or distracting to pedestrians or motorists.

F6.1.2. Unacceptable signage

Certain sign types and displays have the potential to significantly detract from the unique character of Blue Mountains townships. Sign types and displays which may be common in areas of metropolitan Sydney are often not appropriate in the historic village and bushland contexts of the Blue Mountains. The following signs are discouraged and will generally not be supported by Council:

(a) Advertising displays, including commercial advertising and advertising for promotional purposes,

(b) Bunting, other than of a temporary nature (fetes, festivals and the like),

(c) Flashing and animated (moving) signs,

(d) Above awning signs being a sign constructed or installed above the awning of a building,

(e) Roof or sky signs being a sign constructed or installed above the roof, parapet or eaves of a building,

(f) Large inflatable signs such as those used for commercial promotions,

(g) Signs displayed on parked vehicles.

F6.1.3. Exempt Development

Some forms of advertising and signage fall into the category of exempt development, that is, development for which consent is not required. *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Codes SEPP) prescribes a range of exempt signage types and their associated

development standards. Where signage does not satisfy the development standards of the Codes SEPP, the proposal is likely to require consent and will be assessed against the objectives and controls contained within this part of the DCP.

F6.1.4. Replacement of existing signs

Part 2, Division 2 of the Codes SEPP allows the replacement of existing building identification and business identification signs and the content of such signs without the need for consent, subject to a series of development standards. The development standards specify that the development (or replacement sign) must:

(a) replace a lawful sign, and

(b) not be greater in size than the sign that it replaces, and

(c) not be animated, flashing or illuminated unless the sign it replaces has development consent to be animated, flashing or illuminated, and

(d) not involve any alteration to the structure on which the sign is displayed, and

(e) not obstruct or interfere with traffic signs.

Alterations to existing approved signs beyond what is permitted by the Codes SEPP will require modification of the corresponding development consent pursuant to clause 4.55 of the *Environmental Planning and Assessment Act 1979* (EP&A Act). An application to modify an existing consent for signage will be assessed against the objectives and controls contained within this part of the DCP.

F6.1.5. Signage in the public domain

Council's Local Approval Policy permits the placement of A-frame, sandwich board signs and information display stands on public roads (i.e. footpaths) without the need for approval, provided that they comply with the prescribed criteria. Such signs must be positioned so as not to present a public hazard to pedestrians or vehicles. The Local Approvals Policy can be downloaded from Council's website.

Where a sign or part of a sign projects over a public road, including a footpath, the sign is to be approved under section 138 of the *Roads Act 1993*. An application for such an approval is to be made to Council and is commonly termed a Roads Act Approval. Where the signage proposal is the subject of a development application, any subsequent consent will include a condition requiring the Roads Act Approval, if such an approval is required.

F6.1.6. Number, location and design of signs

Controls

Number of signs permitted

C1. No more than 1 building identification sign per street frontage.

C2. No more than 3 business identification signs are permitted to be constructed or installed in relation to a building if the building houses only one commercial tenant.

C3. No more than 6 business identification signs are permitted to be constructed or installed in relation to any building.

C4. No more than one business identification sign is permitted to be constructed or installed in relation to a home business, home industry or home occupation.

Location of signs

C5. Signage must pertain to the business or use carried out on the land upon which the sign is installed or constructed.

C6. Location of signs should generally be confined to the ground level of buildings, the awning fascia or suspended under the awning.

C7. Multi-unit buildings within industrial zones are to be identified at the entrance by a directory board sign, identifying the name of the units, and the occupants.

Note: Maintenance of directory board signs should be the responsibility of the body corporate or the owner.

Design of signs

C8. Signs are to be integrated into the design of the building to which the sign relates.

C9. The scale and configuration of a sign should be compatible with the scale of the building or site to which the sign relates.

C10. Signage proposals are to give consideration to existing signs on a building or within a site as well as the streetscape to ensure that any new sign does not result in visual and physical clutter.

C11. Corporate colours, logos and other graphics are to achieve a high degree of compatibility with the architecture, materials, finishes and colours of the building or site to which the sign relates and are to complement the streetscape.

C12. Signs are to add visual interest and exhibit a high level of design quality.

C13. Signs in residential zones are to be discreet and consistent with residential character. In this regard, colour schemes of signs should complement the colour schemes of the subject and surrounding properties.

C14. Where a signage proposal relates to a site or building that is in the vicinity of a heritage item, the proposal must not detract from the heritage significance of the item by impacting visual curtilage or streetscape character.

F6.1.7. Illumination

Objectives

O1. To ensure that illumination of signs, whether internal or external, does not impact on the amenity or character of Blue Mountains villages.

Controls

C1. Illumination should be minimal and simple. In this regard, flashing and animated (moving) signs will generally not be supported by Council.

C2. Illuminated signs are to comply with AS 4282, Control of the obtrusive effects of outdoor lighting.

C3. Lighting is to be located and directed to avoid light spill that is likely to:

(a) impact the safety of pedestrians or vehicles, and/or

(b) detract from the amenity of any residence or other form of accommodation.

C4. In some cases Council may require that illuminated signs:

(a) have the functionality to allow the intensity of illumination to be adjusted, and/or

(b) be subject to a curfew, or limited to hours of operation.

C5. Cables, fixtures and fittings associated with an illumination scheme are not to detract from the appearance of the building or site to which the illumination scheme relates and should be concealed where possible.

F6.1.8. Heritage items and heritage conservation areas

The following objectives and controls apply to items and areas of environmental heritage listed in Schedule 5 of LEP 2015.

Where signage is proposed to be constructed or installed on a heritage item or within a heritage conservation area (HCA), a development application is generally required. Where a site is listed as an item of State Significance under the *Heritage Act 1977*, separate approval may be required from the NSW Heritage Council.

It is important that the location, design and configuration of signs constructed or installed on or in the vicinity of a heritage item or within a HCA is carefully considered to achieve a high degree of compatibility with the heritage significance of the building or streetscape so as not to detract from that significance.

Objectives

O1. To ensure that existing signs on heritage items and within heritage conservation areas that have heritage significance are retained and conserved, and not compromised by the construction or installation of any new sign.

O2. To ensure that the installation of signage does not result in irreversible damage to significant heritage fabric.

O3. To ensure that signage is compatible with the significance of a heritage item or heritage conservation area in terms of location, configuration, materials, finishes and colours, and that adverse impact is minimised.

O4. To ensure that the significance of a heritage item or heritage conservation area is not compromised by excessive signage.

Controls

Signage location

C1. Where a sign is proposed to be constructed or installed on a heritage item or within a heritage conservation area, the location and configuration of the sign is to accord with the following:

(a) Signs above the ground floor or awning level are not permitted unless it can be demonstrated that this part of the building was historically used for signage, and

(b) A sign is not to dominate the architectural form or features of a heritage listed building and is to be proportionate to any architectural feature to which the sign may relate, and

(c) Historic signs may have their own significance and are not to be obscured or damaged by new signage, and

(d) New signage is to be located at a reasonable and respectful distance from the borders of existing significant signage.

Signage Design

C2. Where a sign is proposed to be constructed or installed on a heritage item or within a heritage conservation area, the design of the sign is to demonstrate the following:

(a) Materials are to be compatible with the heritage significance of the heritage item or heritage conservation area, and be typical of the era or style of building to which the sign relates, and

E.g. matte finish rather than glossy; painted signs rather than printed.

(b) Colours are to be sympathetic to the heritage significance of the heritage item or heritage conservation area. This includes corporate signage which will require special consideration and design to avoid visually dominating the character of the heritage building or place.

E.g. muted tones rather than bright colours.

C3. The installation or construction of internally illuminated signs on a heritage item or within a heritage conservation area is discouraged unless it can be demonstrated that internal illumination is an important aspect of the heritage significance of that item or area.

C4. Externally illuminated signs are permitted only where:

(a) The design of the sign achieves a high degree of compatibility with the heritage item or heritage conservation area; and

(b) The cabling and conduit supplying power to the sign is concealed and does not involve or damage significant fabric.

C5. The number of signs installed or constructed on a heritage item is not to be excessive and generally be limited to two signs e.g. an awning fascia and under awning sign.

Note: Where a heritage building has multiple street front tenancies, additional signs will be considered on a merits basis.

C6. The construction or installation of any sign on a heritage item is to be undertaken in such a manner that damage to significant fabric is avoided or reversible.

Further Information

The following reference material offers helpful guidance on appropriate sign design in heritage conservation areas and on heritage buildings.

- Conserving Historic Signs: Conservation Guidelines for Historic Signs and New Signs on Heritage Buildings, NSW Heritage Office, 2006.
- Street Smart: Corporate Development in Historic Town Centres, NSW Heritage Office, 1998.
- Streetwise: A Practical Guide for the Revitalisation of Commercial Heritage Precincts and Traditional Main Streets in Australian Cities and Towns, Elizabeth Vines, the National Trust of Australia, 1996.

F6.2. Controls for specific sign types

F6.2.1. Building identification signs

A building identification sign is defined as a sign that identifies or names a building and that may include the name of a building, the street name and number of a building, and a logo or other symbol but does not include general advertising of products, goods or services.

Note: Building identification signs may be exempt development pursuant to *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Codes SEPP).

Controls

C1. Subject to C2, building identification signs are to accord with each of the design requirements prescribed in *Part F6 - Table 1*:

Part F6 - Table1: Design requirements for building identification signs

Element	Standard
Maximum No. of signs	Limited to one per elevation
Maximum area (per sign)	2.5m^2
Installation	Flat mounted against exterior wall or parapet
Maximum projection	300mm from face of wall or parapet
Illumination	Permitted if not animated, flashing or moving

C2. Building identification signs that do not accord with the design requirements prescribed in C1 are unlikely to be supported however will be assessed on the merits of the proposal and are to demonstrate:

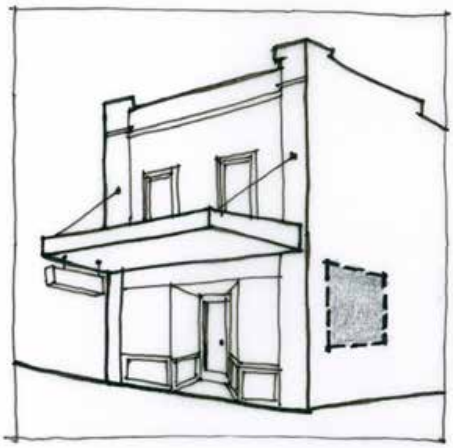
(a) compatibility with the existing or desired future character of an area, and

(b) compatibility with scale, proportion and other characteristics of the building or site on which the signage is proposed to be located.

F6.2.2. Wall signs

A wall sign is defined as a business identification sign (including a business identification sign for a home business) that is flat mounted or painted on the exterior wall of an existing building, or on an existing boundary fence or wall.

Note: Wall signs may be exempt development pursuant to *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Codes SEPP).



Part F6 - figure 1: suitable location for a wall sign

Controls

C1. Subject to C2, wall signs are to accord with each of the design requirements prescribed in *Part F6 - Table 2*:

Part F6 - Table 2: Design requirements for wall signs

Element	Standard	
Maximum No. of signs	One (1) per elevation up to a maximum of 3.	
Maximum area (per sign)	E1 Local Centre , E2 Commercial Centre	• 5m^2
	E4 General Industriall	• 16m^2 if attached or fixed to a building or 20% of the surface area of the wall if painted or applied by adhesive material
	All other zones	• A sign for a home business, home industry or home occupation - 1m^2 • A sign for any other use - 2.5m^2
Installation	Flat mounted or painted against exterior wall of existing building or boundary fence or wall	
Maximum projection	Not to project beyond the parapet or eaves of the building to which the sign is attached	
Illumination	Permitted if not animated, flashing or moving	

C2. Wall signs that do not accord with the design requirements prescribed in C1 will be assessed on the merits of the proposal and are to demonstrate:

(a) compatibility with the existing or desired future character of an area, and

(b) contribution to visual interest of the streetscape or setting, and

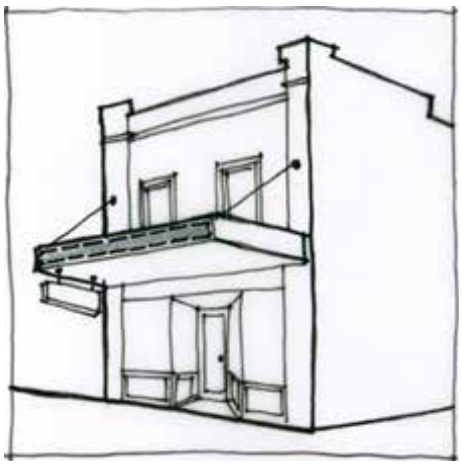
(c) compatibility with scale, proportion and other characteristics of the building or site on which the signage is proposed to be located, and

(d) rationalisation of existing signage and the minimisation of visual and physical clutter.

F6.2.3. Fascia signs

A fascia sign is defined as a business identification sign on the existing fascia of the awning of a building.

Note: Fascia signs may be exempt development pursuant to *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Codes SEPP).



Part F6 - Figure 2: suitable location for a fascia sign

Controls

C1. Subject to C2, fascia signs are to accord with each of the design requirements prescribed in *Part F6 - Table 3*:

Part F6 - Table 3: Design requirements for fascia signs

Element	Standard
Installation	Flat mounted or painted and securely fixed to the fascia
Maximum projection	Not project below, above or beyond the sides of the fascia
Location	600mm behind the alignment of any kerb in the adjacent road
Illumination	Must not be illuminated

C2. Fascia signs that do not accord with the design requirements prescribed in C1 are unlikely to be supported however will be assessed on the merits of the proposal, and are to demonstrate:

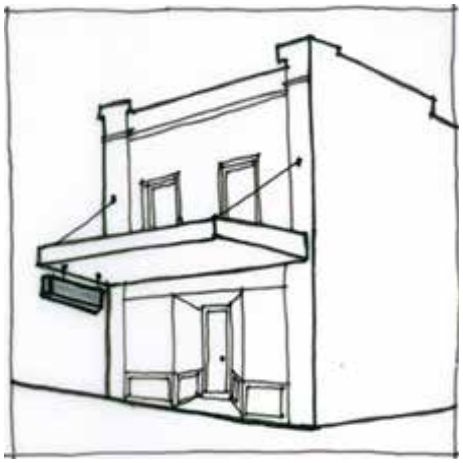
(a) compatibility with the existing or desired future character of an area, and

(b) compatibility with scale, proportion and other characteristics of the building or site on which the signage is proposed to be located.

F6.2.4. Under awning signs

An under awning sign is defined as a business identification sign suspended below the existing awning of a building.

Note: Under awning signs may be exempt development pursuant to *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Codes SEPP).



Part F6 - Figure 3: suitable location for an under-awning sign

Controls

C1. Subject to C2, under awning signs are to accord with each of the design requirements prescribed in *Part F6 - Table 4*:

Part F6 - Table F4: Design requirements for under awning signs

Element	Standard
Maximum No. of signs	One (1) per ground floor tenancy. 2 under awning signs permitted where a tenancy is situated on a corner allotment and has a frontage to both streets.
Maximum area (per sign)	1.5m^2
Maximum dimensions	2.5m in length
Installation	Suspended at a right angle to the building with lower edge 2.6m above ground level (existing)
Maximum projection	Not to project beyond the awning fascia
Illumination	Permitted if not animated, flashing or moving

C2. Under awning signs that do not accord with the design requirements prescribed in C1 are unlikely to be supported however will be assessed on the merits of the proposal and are to demonstrate:

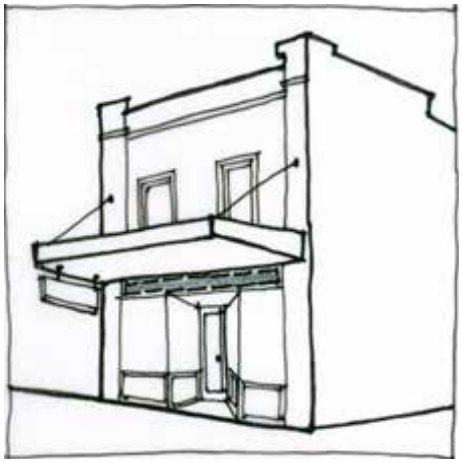
(a) rationalisation of existing signage, and/or the minimisation of visual and physical clutter, and

(b) appropriate clearance such that the proposal will not compromise pedestrian safety.

F6.2.5. Top hamper signs

A top hamper sign is defined as a business identification sign above a display window or attached to the transom of a doorway in an existing building.

Note: Top hamper signs may be exempt development pursuant to *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Codes SEPP).



Part F6 - Figure 4: suitable location for a top hamper sign

Controls

C1. Subject to C2, top hamper signs are to accord with each of the design requirements prescribed in *Part F6 - Table 5*:

Part F6 - Table 5: Design requirements for top hamper signs

Element	Standard
Maximum No. of signs	One (1) per ground floor tenancy.
Maximum area (per sign)	2.5m^2
Maximum dimensions	600mm in height
Installation	Fixed flush to the transom
Maximum projection	Not to project below the transom of the doorway
Illumination	Permitted if not animated, flashing or moving

C2. Top hamper signs that do not accord with the design requirements prescribed in C1 will be assessed on the merits of the proposal and are to demonstrate:

(a) compatibility with the existing or desired future character of an area, and

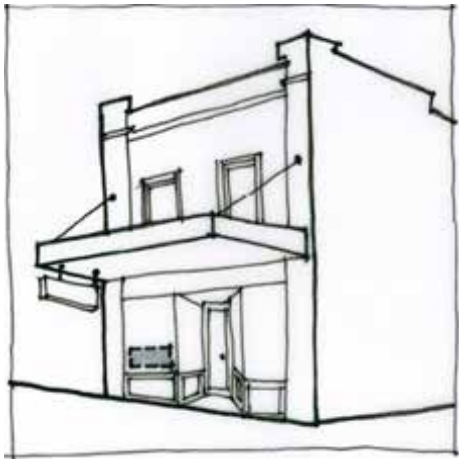
(b) compatibility with scale, proportion and other characteristics of the building or site on which the signage is proposed to be located, and

(c) rationalisation of existing signage and the minimisation of visual and physical clutter.

F6.2.6. Window signs

A window sign is defined as a business identification sign inside any window of an existing building and includes adhesive window decals commonly referred to as 'lifestyle' graphics.

Note: Window signs may be exempt development pursuant to *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Codes SEPP).



Part F6 - Figure 5: suitable location for a window sign

Controls

C1. Subject to C2, window signs and decals are to accord with each of the design requirements prescribed in *Part F6 - Table 6:*

Part F6 - Table 6: Design requirements for window signs

Element	Standard
Maximum area	Not cover more than 20% of the surface of the window in which it is displayed or 6m^2, whichever is the lesser
Location	Must not unreasonably obstruct existing or potential sight lines between the interior of a premise and the public domain, or compromise active street frontages. Consideration will be given to privacy requirements.
Illumination	Must not be illuminated

C2. Window signs that do not accord with the design requirements prescribed in C1 will be assessed on the merits of the proposal and are to demonstrate:

(a) compatibility with the existing or desired future character of an area, and

(b) compatibility with scale, proportion and other characteristics of the building or site on which the signage is proposed to be located.

F6.2.7. Community notice and public information signs

Community notice and public information signs are signs that provide information on, or advertise services or activities on a site for a public or community institution or organisation.

Note: Community notice and public information signs may be exempt pursuant to *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Codes SEPP).

Controls

C1. Subject to C2, community notice and public information signs are to accord with each of the design requirements prescribed in *Part F6 - Table 7:*

Part F6 - Table 7: Design requirements for community notice and public information

Element	Standard
Maximum No. of signs	One (1) per road frontage
Maximum area (per sign)	3.5m^2
Maximum dimensions	5m in height
Location	Wholly within site boundaries
Illumination	Must not be illuminated

C2. Community notice and public information signs that do not accord with the design requirements prescribed in C1 are unlikely to be supported however will be assessed on the merits of the proposal and are to demonstrate:

(a) compatibility with the existing or desired future character of an area, and

(b) appropriate positioning so as not to compromise vehicular or pedestrian safety by obscuring sightlines.

F6.2.8. Temporary event sign

A temporary event sign is defined as a sign or banner that advertises a commercial, community or retail event or a private function (including sponsorship of the event or function).

Note: Temporary event signs may be exempt development pursuant to *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Codes SEPP).

Controls

C1. Subject to C2, temporary event signs are to accord with each of the design requirements prescribed in *Part F6 - Table 8*:

Part F6 - Table 8: Design requirements for temporary event signs

Element	Standard
Maximum No. of signs	One (1) per road frontage
Maximum area (per sign)	6m^2
Location	Wholly within site boundaries
Maximum projection	Not project more than 100mm from building, fence or wall
Illumination	Must not be illuminated
Period of display	Not be displayed earlier than 14 days before an event and be removed within 2 days after an event

C2. Temporary event signs that do not accord with the design requirements prescribed in C1 are unlikely to be supported however will be assessed on the merits of the proposal, and are to demonstrate:

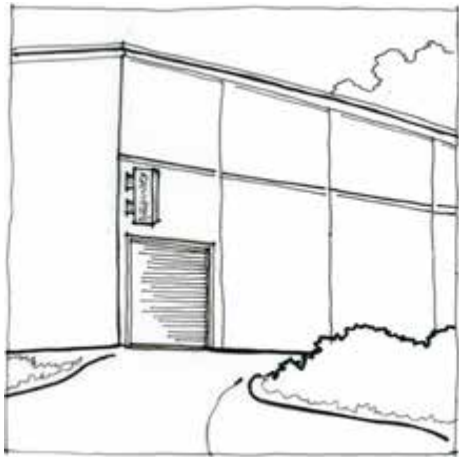
(a) compatibility with the existing or desired future character of an area, and

(b) appropriate positioning so as not to compromise vehicular or pedestrian safety by obscuring sightlines.

F6.2.9. Projecting wall sign

A projecting wall sign is defined as a business identification sign that projects from the exterior wall of an existing building.

Note: Projecting wall signs may be complying development pursuant to *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Codes SEPP).



Part F6 - Figure 6: suitable location for a projecting wall sign

Controls

C1. Subject to C2, projecting wall signs are to accord with each of the design requirements prescribed in *Part F6 - Table 9:*

Part F6 - Table 9: Design requirements for projecting wall signs

Element	Standard	
Generally not acceptable within the following zones	RU2 Rural Landscape, RU4 Primary Production Small Lots, R2 Low Density Residential, R3 Medium Density Residential, C2 Environmental Conservation, C3 Environmental Management, C4 Environmental Living	
Location	600mm behind the alignment of any kerb in the adjacent road	
Maximum No. of signs	One (1) per elevation to a maximum of 3. Multiple projecting wall signs on the same elevation will be considered for premises with multiple commercial tenants within Zone E4 General Industrial	
Maximum area (per sign)	E4 General Industrial	2.5m^2
	E1 Local Centre. E2 Commercial Centre, RE1 Public Recreation, RE2 Private Recreation, R1 General Residential, SP3 Tourist	1.5m^2
Maximum projection	E4 General Industrial	• Not to project more than 1.5m horizontally from wall of building • Not to project beyond the parapet or eaves
	E1 Local Centre, E2 Commercial Centre RE1 Public Recreation, RE2 Private Recreation, R1 General Residential, SP3 Tourist	• Not to project more than 0.75m horizontally from wall of building • Not to project beyond the parapet or eaves
Installation	Suspended at a right angle to the building with lower edge 2.6m above ground level (existing)	
Illumination	Illuminated only during approved operating hours	

C2. Projecting wall signs that do not accord with the design requirements prescribed in C1 will be assessed on the merits of the proposal and are to demonstrate:

(a) compatibility with the existing or desired future character of an area, and

(b) contribution to visual interest of the streetscape or setting, and

(c) compatibility with scale, proportion and other characteristics of the building or site on which the signage is proposed to be located, and

(d) rationalisation of existing signage and the minimisation of visual and physical clutter.

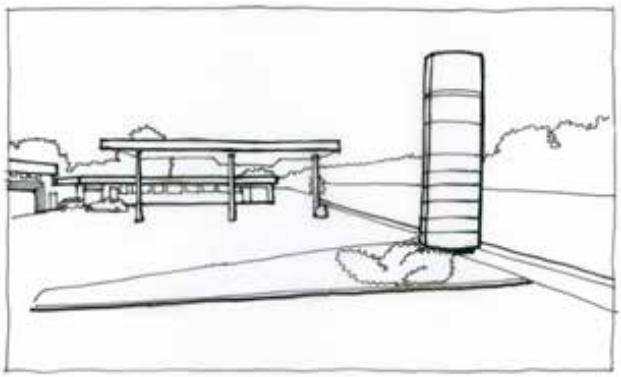
F6.2.10. Freestanding pylon and directory board signs

A freestanding pylon or directory board sign is defined as a business identification sign that is displayed on a freestanding structure that is mounted on the ground on one or more supports.

Note: Freestanding pylon and directory board signs may be complying development pursuant to *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* (Codes SEPP).



Part F6 - Figure 7: suitable location for a freestanding directory board sign



Part F6 - Figure 8: suitable location for a freestanding pylon sign

Controls

C1. Subject to C2, freestanding pylon and directory board signs are to accord with each of the design requirements prescribed in *Part F6 - Table 10:*

Part F6 - Table 10: Design requirements for freestanding pylon and directory board signs

Element	Standard	
Generally not acceptable within the following zones	RU2 Rural Landscape, RU4 Primary Production Small Lots, R1 General Residential, R2 Low Density Residential, R3 Medium Density Residential, C2 Environmental Conservation, C3 Environmental Management, C4 Environmental Living	
Location	Wholly within site boundaries in a location that does not obstruct the sight lines of, or interfere with, any traffic control device, including traffic control lights	
Maximum No. of signs	One (1) per street frontage provided the frontage is more than 15m in width	
Maximum dimensions	E4 General Industrial, E1 LocalCentre, E2 Commercial Centre	6m in height
	RE1 Public Recreation, RE2 Private Recreation, SP3 Tourist	3m in height
Maximum area (per sign)	E4 General Industria, E1 Local Centre, E2 Commercial Centre	• $8m^2$ if the sign relates to a premises with a single commercial tenant • $16m^2$ if the sign relates to a premise with multiple commercial tenants
	RE1 Public Recreation, RE2 Private Recreation, SP3 Tourist	$4.5m^2$
Illumination	Illuminated only during approved operating hours	

C2. Freestanding pylon and directory board signs that do not accord with the design requirements prescribed in C1 are unlikely to be supported however will be assessed on the merits of the proposal and are to demonstrate:

(a) compatibility with the existing or desired future character of an area, and

(b) contribution to visual interest of the streetscape or setting, and

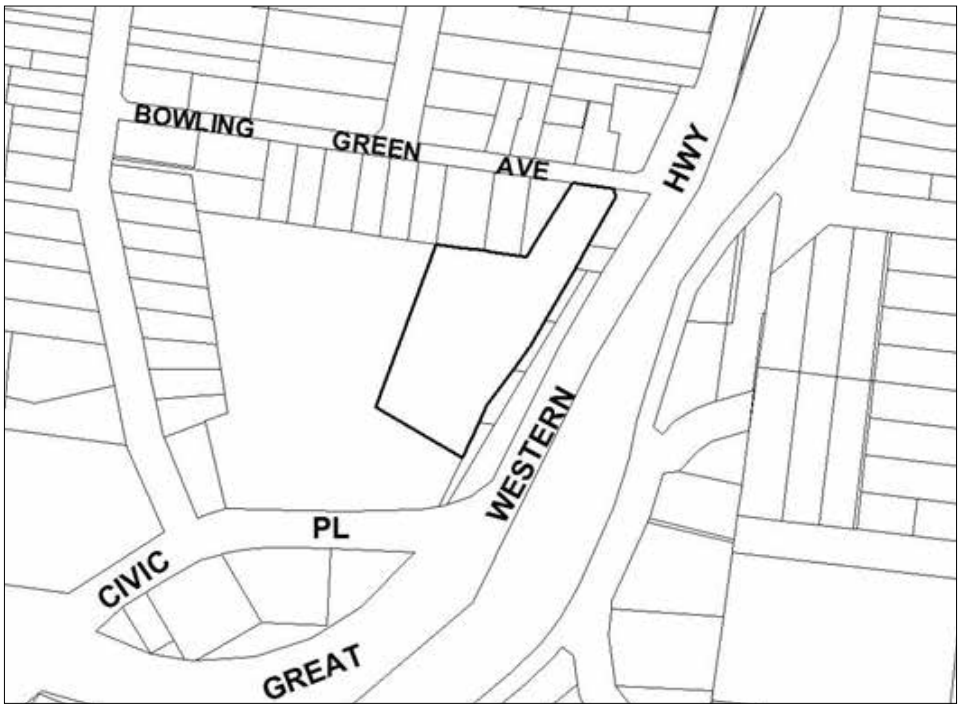
(c) appropriate positioning so as not to compromise vehicular or pedestrian safety by obscuring sightlines.

F6.3. Area specific signage controls

The provisions and controls contained in this part are intended to regulate the installation and construction of signage at specific sites.

F6.3.1. The Edge Cinema

This part applies to "The Edge" cinema located at Lot 1 DP848603, 225–237 Great Western Highway, Katoomba.



Part F6 - Figure 9: The Edge Cinema

Permitted signage

- A wall advertisement is an advertisement that is generally painted on or fixed flat to the wall of a building.
- A special promotional advertisement is an advertisement for an activity or event of a civic or community nature.

Note: The provisions and controls contained in this part are to be read in conjunction with the *Transport Corridor Outdoor Advertising and Signage Guidelines 2007* (Guidelines). Outdoor advertising formats are defined in the Guidelines.

Controls

C1. Wall advertisements or special promotional advertisements are to be located within the area shown in *Part F6 - Figure 10*.

C2. Wall advertisements or special promotional advertisements are to have a maximum area of 85m^2 and a minimum area of 45m^2.

Note: The display of an advertisement that has an area greater than 20m^2 or that is higher than 8m above the ground is advertised development for the purposes of the EP&A Act.

C3. The content of wall advertisements is restricted to information relating to events and movies held at "the Edge" cinema.

C4. The display of a special promotional advertisement is limited in time to a total of 3 months in any 12 month period.

C5. Should there be more than one sign erected, signage must be integrated as one panel or coordinated in terms of size and location.

C6. Signage may take the form of banners attached to the wall or images projected onto a screen which is securely fixed to the wall.

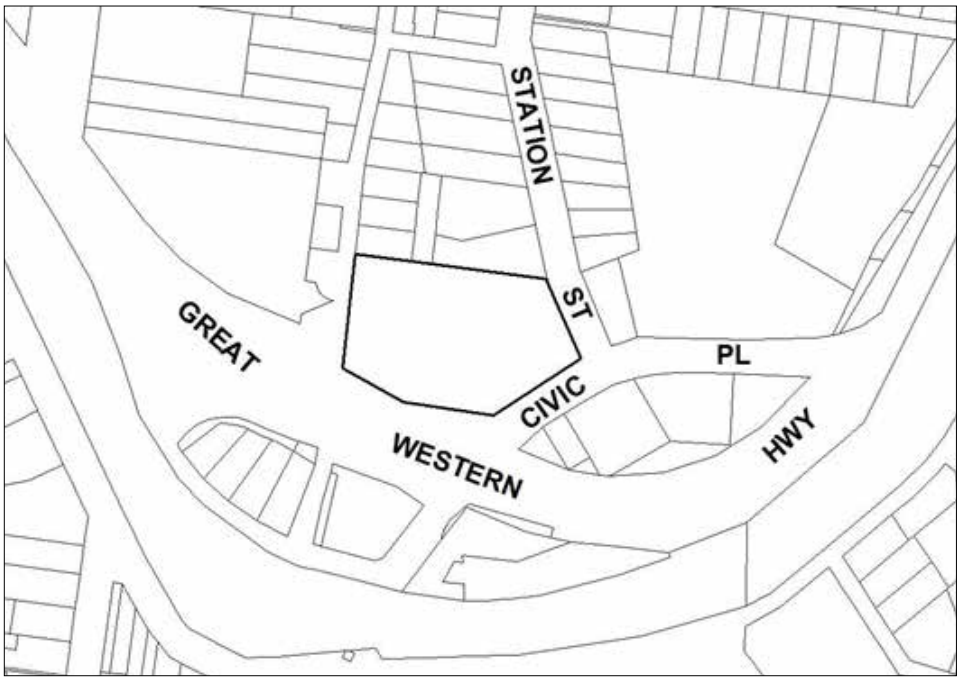
C7. Any light projections or illumination of signage must comply with the *Transport Corridor Outdoor Advertising and Signage Guidelines, July 2007.*



Part F6 - Figure 10: Location of wall advertisements or special promotional advertisements.

F6.3.2. BMCC Headquarters

This part applies to the Blue Mountains City Council Headquarters building, located at Lot 1 DP705910 – 2 – 6 Civic Place, Katoomba.



Part F6 - Figure 11: BMCC Headquarters

Permitted signage

- A special promotional advertisement is an advertisement for an activity or event of a civic or community nature.

Note: The provisions and controls contained in this part are to be read in conjunction with the *Transport Corridor Outdoor Advertising and Signage Guidelines 2007* (Guidelines). Outdoor advertising formats are defined in the Guidelines.

Controls

C1. Special promotional advertisements are to be located within the areas shown in *Part F6 - Figure12*.

C2. Maximum area of special promotional advertisement signs is 25m^2.

Note: The display of an advertisement that has an area greater than 20m^2 or that is higher than 8m above the ground is advertised development for the purposes of the EP&A Act.

C3. Special promotional advertisements are to be consistent with Council's Public Art Policy.

C4. Should there be more than one sign erected, signage must be integrated as one panel or coordinated in terms of size and location.

C5. Signage may take the form of banners attached to the wall or images projected onto a screen which is securely fixed to the wall.

C6. Any light projections or illumination of signage must comply with the *Transport Corridor Outdoor Advertising and Signage Guidelines, July 2007.*



Part F6 - Figure 12: Location of special promotional advertisements.

PART F7
OTHER DEVELOPMENT

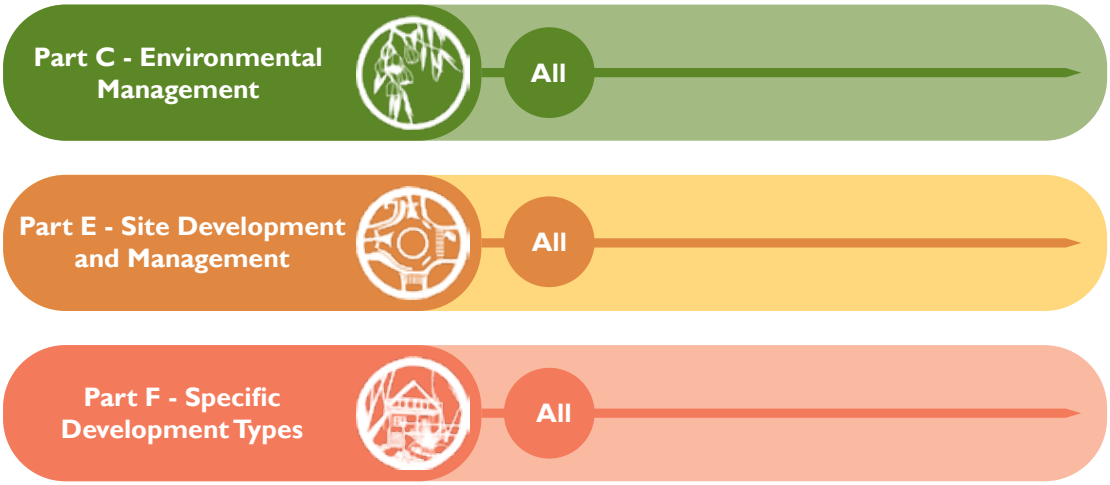


Introduction

This part provides objectives and controls for particular types of development. These development types may have site specific requirements or ,simply due to the nature of the development, require separate consideration.

To the extent of any inconsistency between this section and any other DCP sections, this section will prevail.

Read in conjunction with:



Relationship to other legislation:

- *State Environmental Planning Policy (Exempt and Complying Codes) 2008*

F7.1. Child Care Centres

Explanation

Child care centres provide an important service to the community and it is important that these facilities are appropriately planned and located, to provide for safety for the children in care, and to minimise the impact from this form of development on adjoining land, particularly where this is used for residential purposes.

Note: In addition to the below requirements, the State Environmental Planning Policy (Transport and Infrastructure) 2021 (Transport and Infrastructure SEPP) and accompanying Child Care Planning Guideline contain development objectives and controls that need to be addressed by Child Care Centre development applications.

Objective

O1. To provide child care centres which are appropriately located and planned so as to provide for a safe environment and identify key components of urban design to be considered and addressed in development proposals.

O2. To retain and enhance the unique qualities of neighbourhood character and context, by responding to existing elements and elements of desired future character.

O3. To ensure that the operation of child care centres minimises impact on the amenity of adjoining and nearby residential land uses.

Controls

Access and Parking

C1. Child care centres are not permitted on battle-axe allotments or where the access is to be provided via a right-of-carriageway due to the potential for amenity, traffic and noise impacts on adjoining properties.

C2. To provide for pedestrian safety, pick-up, set-down and pedestrian areas are to be separated from the general parking areas and driveways.

Amenity and Noise

C3. Noise levels (measured at any point on the boundary of the site, between the proposed child care centre and adjoining property) is not to exceed 5 decibels (dBA) above the background level.

C4. Public address systems or amplified music are not to be installed or used with the child care centre.

C5. Outdoor play areas are not to be located within the front building setback.

C6. Play equipment is not to be located within 2m of the fence line, and is not be higher than the fencing.

C7. 50% of all outdoor play areas are to be shaded during the hours of 10:00am to 3:00pm, at the summer solstice (21 December).

F7.2. Home Employment

Explanation

Home employment provides an opportunity for people to develop and operate local scale businesses from their home (or in association with a dwelling). By their nature therefore, they operate within a residential setting, and consideration of the potential impacts on adjoining neighbours is necessary, particularly in relation to noise and amenity.

Objective

O1. To ensure that home employment is appropriately scaled and operated within consideration for the residential setting in which it is located.

Controls

C1. The total site coverage resulting from the home employment land use is not to exceed that specified for the land elsewhere in this DCP, and

C2. Any external lighting associated with the home employment land use is to be located and directed to minimise impact on adjoining residential properties, and

C3. A separate or defined access is to be provided from the street to the home employment area.

C4. For privacy and security, a clearly identifiable separate area for the operation of the home employment land use is to be provided, that can be separated from the balance of the dwelling.

C5. It must be able to be demonstrated that it is reasonably practical for the home employment area to be converted back to part of the residence, or be a separate granny flat or self-contained unit.

C6. The character of the proposed home employment land use is to be consistent with the scale and massing of the surrounding area, where it is located in an existing residential setting.

F7.3. Service Stations

Explanation

Service stations often require direct access to the Great Western Highway or other major arterial road, generating the need for particular access requirements. Other elements of consideration for this development type include traffic manoeuvrability (both within the site and upon entry and exit), as well as safety considerations for fuel loading etc.

Objectives

O1. To ensure that access arrangements are functional and safe, and do not result in traffic hazards, particularly on main arterial roads.

Controls

C1. Development for the purpose of a service station is to be located on an allotment that:

(a) is at least 90m from the junction or intersection of a classified road, with another main or arterial road, and

(b) has a frontage of not less than 50m.

C2. Provision is to be made for separate entrances to and exits from the site. Those entrances and exits are to be separated by physical barriers constructed on the road alignment and so identified by suitable signs which are readily visible to persons using the adjoining road or entering the site.

C3. Inlets to bulk fuel storage tanks are to be situated on the site so as to ensure that tankers, whilst discharging fuel into the storage tanks, stand wholly within the site.

F7.4. Sex Services Premises

Explanation

Sex services premises is a permitted use within limited areas of the Blue Mountains. Within these areas, there are other restrictions with regard to the location of this land use, relative to other forms of development.

Objectives

O1. To ensure sites proposed for use as sex services premises are appropriately located and sufficiently distant from other incompatible land uses.

Controls

C1. Sex services premises are not to be located:

(a) Adjacent to, adjoining or within 100m of an educational establishment, a childcare centre, a recreational area, a place of worship, a hospital, or any other place regularly frequented by children for recreational or cultural activities, and

(b) Within 50m of the boundary of any zone in which a dwelling house is a permissible use, and

(c) On land fronting, or with direct vehicular access from, the Regional Transport Corridor.

F7.5. Intensive plant agriculture

Explanation

Intensive plant agriculture is permitted within limited areas of the Blue Mountains, being land within zone RU2 Rural Landscape and zone RU4 Primary Production Small Lots. By nature, this land use requires the use of fertilisers, pesticides, capital and labour, and may also employ new and innovative technologies and improved practices to improve profitability and sustainability. Intensive plant agriculture is sometimes accompanied by ancillary developments such as farm gate sales or cellar door premises. Potential environmental impacts are required to be considered, as well as potential amenity impacts, including noise and odour.

Objectives

O2. To ensure there is no risk to public health from the operation of intensive plant agriculture.

O3. To protect native flora and fauna biodiversity, and the hydrological condition of the land.

O4. To ensure the development is managed to prevent the spread of priority and environmental weeds.

O5. To avoid erosion through the use of appropriate farming practices.

O6. To ensure that the operation of the site minimises any impacts on the amenity of adjoining land and the immediate locality, particularly in relation to noise , odour and light spill.

Controls

C1. Chemicals are to be stored securely and in accordance with the *NSW Pesticides Act 1999*.

C2. Chemical use to be in accordance with the *Australian Pesticides and Veterinary Medicines Authority (APVMA)*.

C3. Water collection and storage to be in accordance with regulated or licensing requirements.

C4. Odours to be controlled in accordance with NSW EPA Guidelines.

Note: An Odour Impact Assessment may be required to be submitted with a development application.

C5. Leachate from organic fertilisers is to be contained to the area approved for intensive plant agriculture.

C6. To avoid any form of contamination or impact, a suitable buffer to the intensive plant agriculture land use is to be provided.

F7.6. Keeping of Hoofed Animals

Explanation

A hoofed animal is defined as an animal with a hard covering to the foot and includes horse, sheep, donkey, goat, pig, deer, cattle, llama and alpaca.

The keeping of hoofed animals is not a land use defined in LEP 2015, and would be considered ancillary to certain residential and rural development on appropriately sized land. This part includes objectives and controls to ensure appropriate consideration for care of the animals and any the environmentally sensitive areas on the site. Potential environmental impacts can occur as a result of soil compaction, grazing/browsing on native vegetation, ringbarking trees, degradation of land adjacent to creek lines and the generation of organic waste (manure).

Objectives

O1. To ensure the keeping and management of hoofed animals occurs on adequately sized sites and does not result in adverse impacts to any environmentally sensitive land, including scheduled and non-scheduled vegetation.

Controls

C1. The keeping of a hoofed animal is restricted to an allotment with an area greater than 1 hectare, where any environmentally sensitive land is excluded from that area. A stocking rate of 1 hoofed animal per 5 hectares is recommended.

C2. Environmentally sensitive land is to be fenced to exclude hoofed animals. Fencing for livestock must be secure to prevent escape, and must not be a hazard for wildlife, cause destruction to any watercourse or cause destruction of any scheduled or non-scheduled vegetation.

C3. There is to be no access for stock to a creek or waterbody and water points are to be minimum 10 metres from any waterbody or environmentally sensitive land.

C4. For properties in proximity to residential land uses, the management of the manure, include storage, is to be in a manner that does not attract flies or generate odour or where it can contaminate any waterbody.

C5. Where shelters and sheds associated with the keeping of hoofed animals do not satisfy the standards of *State Environmental Planning Policy (Exempt and Complying Development) 2008*, development consent is likely to be required.

Note: Development including the keeping of hoofed animals is also to give due consideration to the standards prescribed within *Local Government (General) Regulations 2021* (Schedule 2, Part 5 – Standards for keeping birds and animals).

F7.7. Seniors Housing

Explanation

This part of the DCP contains objectives and controls which apply to seniors housing as defined in LEP 2015.

There is need for diverse housing choice in suitable locations in the Blue Mountains for people with a disability and for older people. The concept of seniors housing is intended to be a shorthand phrase encompassing both housing for seniors and for people with a disability. Part F7.7 deals with both kinds of housing.

Seniors housing is permissible in medium density zones R1 and R3, but unlike other forms of medium density, it is also permissible in the R2 zone in recognition of the need to provide greater opportunity for ageing in place. Not all sites in the R2 zone will be suitable for this type of land use. Siting matters for consideration include access to services and public transport, as well as bush fire prone land.

To facilitate ageing in place, adaptable seniors housing dwellings must incorporate construction and design elements to meet peoples changing mobility requirements over their lifetime (for example, level pathways, wider doorways and corridors and reinforced bathroom walls to enable future installation of grab rails).

The provisions and performance criteria for site responsive design are embodied in this DCP within various parts. Part F7.7 cannot be read in isolation. Reference to other relevant portions of the DCP is necessary. Site responsive solutions are encouraged. Applicants will need to provide the necessary plans and documentation to demonstrate that all relevant objectives have been considered and addressed.

Objectives

O1. To provide for the housing needs of older people to age in place in their community and ensure adequate housing choice for people with a disability, in suitable locations throughout the Blue Mountains.

O2. Provision of housing options that will meet the access and mobility needs of any occupant, that are superior in design through achieving high performance in sustainability, solar access and accessibility.

O3. Ensure housing is responsive to both the relevant zone objectives and unique character of the township in which they are situated.

O4. To provide well designed seniors housing in the R1, R2 and R3 zones, that is located within close proximity of facilities and services provided in the E1 and E2 zones.

Controls

General

C1. A restriction as to user is to be registered against the title of the property on which the development is to be carried out, in accordance with section 88E of the Conveyancing Act 1919, limiting the sale and use of the development, including any dwelling within that development to; a) people over the age of 55 and people with a disability, or b) people who live with older people or people with a disability, or c) staff employed to assist in the administration of and provision of services to seniors housing developments.

Site related requirements

C2. The minimum lot size for a seniors housing development is 1,100 square metres.

C3. The site frontage must be at least 20 metres wide measured at the building line.

C4. Reasonable pedestrian access via a footpath or other similar and safe means is to be available from the primary pedestrian entrance of the development to land zoned E1 Local Centre or land zoned and E2 Commercial Centre.

C5. For the purpose of F7.7.C4, reasonable pedestrian access is considered to be provided if:

(a) There is a path of travel via a sealed footpath or other similar and safe means (that is suitable for access by means of an electric wheelchair, motorised cart or the like) from the development to a local or neighbourhood centre, that avoids vehicle and pedestrian conflict;

(b) The gradient of access paths does not exceed an overall average of 1:14 over the shortest path of travel from the development to the local or neighbourhood centre, provided that;

i. slopes up to 1:12 do not exceed 15 metres at a time; and

ii. slopes up to 1:10 do not exceed 5 metres at a time; and

iii. slopes up to 1:8 do not exceed 1.5 metres at a time, and

(c) There are sufficient rest stops along the route, which should include seats or level landings.

C6. Where requirements of F7.7.C5 cannot be met, residents are to have reasonable access to regular public transport that is available both to and from the proposed development during daylight hours at least once each day 5 days per week and that provides access to at least one of the zones listed in F7.7.C4, access to which is within 400 metres of the proposed development.

C7. The pedestrian access shall not involve the crossing of local roads unless safe crossing conditions are provided with reference to sight distances, level crossings, pedestrian refuges and the like.

C8. Pedestrian access shall not involve crossing of a classified road unless there is a bridge or subway providing pedestrian access, or a signalised crossing with auditory devices provided.

Note: A classified road is in accordance with the NSW Government Transport Classified Roads Schedule

C9. Seniors housing (self contained) developments should incorporate a range of dwelling sizes, particularly those which contribute to the increased provision of single and two bedroom dwelling stock.

Height of buildings

C10. If the development is proposed in the R2 zone:

(a) a building that is adjacent to a boundary of the site must be not more than 2 storeys in height; and

(b) a building located in the rear 25% area of the site must not exceed 1 storey in height.

Private and communal open space

C11. For each dwelling of a self contained seniors housing development, provision is to be made for a minimum area of private open space, based on the number of bedrooms in the dwelling as specified in Part F7.7 - Table 1.

Part F7.7 - Table 1: Minimum area of private open space based on number of bedrooms

Number of bedrooms	Minimum area of POS
One (including bedsits)	25m^2
Two	40m^2
Three +	50^2

C12. Private open space provided to comply with F7.7.C11 is to include at least one area that:

(a) has reasonable access to a living area of the subject dwelling; and

(b) is on a compatible level with a living area of the subject dwelling; and

(c) contains an area suitable for drying clothes; and

(d) has a slope of less than 10%; and

(e) complies with the minimum area and minimum width, based on the number of bedrooms in the dwelling, as specified in Part F7.7 - Table 2

Part F7.7 - Table 2: Principal area of private open space based on number of bedrooms

Number of bedrooms	Minimum area	Minimum width
One (including bedsits)	15m^2	3m
Two +	20m^2	3.5m

C13. Despite requirements for F7.7.C11, concession is made for reduced private open space when the deficit is consolidated in a communal open space area that is well designed, fit for purpose and appropriately landscaped to achieve excellent amenity outcomes and opportunities for social interaction.

Landscaping

C14. Development that provides communal open space is to articulate the intended use or activities of the communal space and be designed accordingly. The assessment of this communal open space will be a merit based approach based on the intended use or activity identified.

C15. Communal open space should provide features as necessary to suit its purpose, for example, appropriate as seating, tool storage, barbeque and shade facilities, potting benches or bird baths and contain plantings which characterise and enhance its functional performance, be it growing vegetables, socialising, bird watching or meditation. Large expanses of open lawn without associated plantings are to be avoided.

C16. Deep soil planting areas are preferably located in communal open space areas to complement the intended use and to retain or promote mid and rear block canopy planting. Where space and services permit, provide additional deep soil areas within the front setback to achieve high quality streetfront planting of an appropriate scale.

Parking

C17. Notwithstanding parking controls for seniors housing contained elsewhere in this DCP, where suitable, and subject to a merit based assessment, consolidated parking is encouraged, if the overall design results in superior outcomes for landscaping, communal open space and amenity. This may include car parking spaces being allocated so as to be available to all dwellings on a shared basis.

Adaptability and Accessibility

C18. In the case of self contained seniors housing dwellings, 100% of dwellings are to be adaptable, designed and constructed in accordance with Adaptable House Class B in Australian Standard 4299 - Adaptable Housing, incorporating as a minimum all first priority desirable features.

C19. For self contained seniors housing developments, variations will be considered regarding exclusion from the provision of private roofed car parking spaces (clauses 3.7.1 and clause 3.7.3 AS4299), where it can be demonstrated that doing so will result in strong landscape and communal open space outcomes.

C20. In the case of development comprising 5 or more self contained dwellings, at least 20% of all dwellings (to the nearest whole number) shall be accessible to people with a disability. Developments containing less than 5 dwellings shall include a minimum of 1 dwelling that is accessible to people with a disability.

C21. Development standards concerning accessibility and useability for residential care facilities are not specified in this Part. For relevant standards, see the Commonwealth aged care accreditation standards and the *Building Code of Australia*.